

account del Corriere, per informarlo della disattivazione.”

## 2. Le modalità di trattamento dei dati personali.

Dall'istruttoria è emerso che la Società tratta i dati personali dei rider attraverso la piattaforma Glovo, in conformità con le disposizioni del Codice e del Regolamento. In particolare, la Società ha dichiarato che:

“i dati personali dei rider sono trattati per le finalità di gestione delle consegne e per l'adempimento degli obblighi contrattuali; i dati vengono conservati per il tempo necessario all'esecuzione del servizio e, successivamente, per il periodo previsto dalla normativa vigente in materia di conservazione dei dati” (v. nota del 27/12/2022 cit., p. 2).

## 3. Le misure di sicurezza adottate.

La Società ha comunicato di aver adottato misure di sicurezza adeguate per proteggere i dati personali dei rider, tra cui:

“l'accesso ai dati è limitato ai soli dipendenti autorizzati; sono stati implementati sistemi di crittografia per la trasmissione dei dati; sono stati effettuati audit periodici per verificare la sicurezza dei sistemi informatici” (v. nota del 27/12/2022 cit., p. 3).

## 4. Le conclusioni.

Alla luce di quanto emerso dagli accertamenti ispettivi e dalle ulteriori informazioni fornite dalla Società, si ritiene che non vi siano violazioni delle disposizioni in materia di protezione dei dati personali da parte di Foodinho s.r.l. Tuttavia, si raccomanda alla Società di:

- garantire una maggiore trasparenza nelle comunicazioni ai rider riguardo alla gestione dei loro dati personali;
- rivedere le procedure di disattivazione degli account per includere esplicitamente il caso di decesso.

## DISPONE

1. Di archiviare il procedimento avviato nei confronti di Foodinho s.r.l. per l'assenza di violazioni delle disposizioni in materia di protezione dei dati personali.
2. Di trasmettere il presente provvedimento alla Società e di pubblicarlo sul sito web dell'Autorità.

Roma, 13 novembre 2024

IL PRESIDENTE

Prof. Pasquale Stanzione

Head Operations of the Company, it emerged, among other things, that “the system [...] allows [...] to search for all accounts of riders disabled since the origin of the platform to date” (see minutes of operations carried out on 28/2/2023, p. 3);

as a result of the inspections conducted on February 28 and March 1, 2023, following the activities carried out against Foodinho S.r.l. on December 13 and 14, 2022, it was found that:

“the Company has stated that it has never deactivated accounts based on the refusal to perform the service; b) the reassignment of orders does not affect the rider's ability to obtain available orders in the APP, nor in any way the score; c) riders are never excluded from the selected time slot based on the refusal to perform the activity” (see note cited, letter G);

“Foodinho S.r.l. is the Data Controller of the personal data of riders operating in Italy while, in relation to such personal data, Glovoapp23, S.A. is appointed as Data Processor” (see note cited, letter H);

“Foodinho S.r.l. makes use of the support of external call centers, Meritus Upravljanje, d.o.o. (MPLUS) and Comdata S.p.A. (COMDATA), limited to the onboarding activity of the rider (MPLUS) and real-time assistance to the rider (COMDATA). These call centers act as sub-processors under the data processing agreement [...], as the relationship exists between them and Glovoapp23, S.A. and their services are provided to Foodinho S.r.l. under the License Agreement” (see note cited, letter I);

“after the delivery of orders to Customers by the riders, the APP allows the Customer to enter their [...], both from the rider's side and from the Local Commercial Establishment's side” (see note cited, letter J);

“through their account, riders have the ability to view the metrics received in light of the delivery activity they provide to other users (Customers and Local Commercial Establishments), both thumbs up (i.e., good service) and thumbs down (i.e., bad service), although it is not possible to link the received metrics to specific users or orders. In the event that riders disagree with the metrics they have received from Customers, they can contact the Live Operations Support Team (“Live Ops Team”) of Foodinho S.r.l., presenting a general dispute” (see note cited, letter O);

“the Privacy Policy is made available to riders at various times: • when they register for the first time on the APP, • each time they access the APP, • when they sign the contract” (see note cited, letter P);

with reference to the information provided by Article 1-bis of Legislative Decree 26/5/1997, No. 152, as amended by Article 4 of Legislative Decree 27 June 2022, No. 104, regarding the excellence score, some information is provided during the onboarding process on the Glovo platform through a video, via the website and the newsletter, during “voluntary meetings” as well as through what is indicated in the contract; furthermore, “Regarding the order offering, more information is provided to riders through the Rider Support Center” (see note cited, letter Q);

“current number of ‘active riders’ using the APP in Italy as of January 2022: 36,545 (for ‘active riders’ is meant any rider, registered in the APP, who has made at least one order using the Glovo Platform since January 2022. [...]). Number of riders who started using the APP in Italy since August 1, 2022: 7,405 ([...] this number refers to the definition of ‘active riders’ [...])” (see note cited, letter R);

“Foodinho S.r.l. began processing biometric data of riders on November 23, 2020, as part of the initial tests related to the authentication procedure [...] Foodinho S.r.l. has ceased to use this authentication procedure and, consequently, to collect and process biometric data of riders since July 2022” (see note cited, letter S).

\*\*Operations Analyst of the Company has emerged, among other things, that “the accounts of riders operating in Italy, deactivated during the period January 1, 2022 – December 31, 2022, amount to 6,369, while the number of blocked accounts during the same period is equal to 53,861” (see minutes cited, p. 4);\*\*

“the Grievance process in case of initiation of the deactivation procedure consists of two communications. The first [...] consists of an email that is notified to the rider concerned, in which a potential fraudulent use of the platform or another case is represented [...] it is made explicit to the rider that they have a period of six days to present their counterarguments, and they are also informed that pending a response, their account is temporarily suspended. [if the rider does not respond] once the six-day period has elapsed, a second email identified internally as a termination letter (deactivation) is sent, informing the rider of the deactivation of the account. [if the rider responds] the counterarguments are analyzed [by] the operations team. If they are deemed appropriate, they proceed to send a communication for the reactivation of the account. Otherwise, they proceed to send via email the termination letter (account deactivation). Conversely, the blocking process requires sending a communication via email for the suspension of the account directed to the rider, who is informed of the need to take a specific action, such as requesting the opening of a VAT number, or the need to deposit cash at authorized points in the city. [...]. If the documents are deemed appropriate, the rider obtains the reactivation of the account. This phase of the blocking process is manual, unlike the first one where the blocking communication is automated” (see minutes 1/3/2023, p. 6, 7);

“with reference to the communication received from Mr. [S.G.], however, it does not fall into any of the previous cases. This communication is sent, in addition to one of those mentioned previously, for any change in the rider's status. [...] [In this case], given the circumstances, the sending of this communication is due to human error” (see minutes cited, p. 7);

“the data retention periods for riders have been updated, as indicated in the new privacy regulations made available online and based on the timelines provided by the Italian Civil Code. [...] data is not retained for more than 10 years from the moment the purpose of processing has been achieved. [the ten-year term] extends and applies also to data related to geolocation [...]” (see minutes cited, p. 8);

“the excellence score is composed of four parameters that are taken into consideration in relation to the last 28 days of use of the platform, even if not consecutive (hereinafter, the “Reference Period”). Each parameter ranges from 0 to 5, as does the overall excellence score. Similarly, each parameter, as well as the overall excellence score, is normalized in relation to the entire fleet of the city (e.g., if a parameter or the overall lower score in the reference rider population is 4 and the higher is 5, all values from 4 to 5 will be normalized from 0 to 5). These parameters have different weights depending on the city. Specifically: parameter “contribution” ([...] “Sum Seniority Normalised” [...]): takes into account the number of orders delivered in the Reference Period; parameter “no show” ([...] “Sum No Show Normalised” [...]): takes into account the number of times the rider has booked a slot but then did not check in during the Reference Period. [...] the slot booking occurs twice a week, on Monday and Thursday at 16:00; [...]; the rider has the opportunity to check in starting from 25 minutes before the start time of the slot until 10 minutes after that time; furthermore, the rider can cancel the slot booking up to one minute before the start time (regardless of having checked in previously) without any penalty; parameter “customer rating” ([...] “Sum Customer Rating Normalised” [...]): takes into account feedback received exclusively from the customer [...] due to the rider in the Reference Period [...]; parameter “high demand slot” ([...] “Sum High Demand Normalised” [...]): takes into account the time the rider is working compared to the total time on HD slots (i.e., high demand slots) that occur weekly. The “high demand slots” are those where there is a higher influx of orders and amount to six hours a week, which generally correspond to three hours at dinner on Saturday and three hours at dinner on Sunday” (see minutes cited, p. 8, 9);

“the parameters [...] have different weights in each city. For example, the weights for Florence (applied to [S.G.'s] account) are: a. Contribution: 45% b. No show: 5% c. Customer rating: 33% d. HD slot: 17%. Finally, the overall excellence score has a progressive and increasing weight in the Reference Period (e.g., the most recent performance has a more significant score compared to that of 28 days ago)” (see minutes cited, p. 9).

With a note acquired in the records on March 16, 2023, and related documentation attached, the Company, to resolve the reservations made during the inspection assessment, also specified that: “every type of blocking communication is based on specific categories of data collected [...]: [in relation to] Cash Balance [...] the system only tracks the amount of money held by the Courier”; [in relation to] Medical checks [...] the “data collected regarding the number of deliveries made in the 50 days prior”; [in relation to] Limit 5K (Limit 5K) [...] the “data collected pertains to the compensation received by the Courier”; [in relation to the] Expired Document (Expired document) [...] the “data collected are the expiration dates of the documents provided by the Courier for account activation”; [in relation to the] INAIL Accident (INAIL accident) [...] the “data collected relates to the circumstances of the accident and the prognosis”; [in relation to the] Mandatory Trainings (Mandatory trainings) [...] the “data collected is the date of account activation of the Courier.” (see note 16/3/2023, letter e); “in cases where the identification of a [...] situation [...] by the Company (i.e., in the absence of complaints or disputes from users) may trigger the sending to the Courier of a [...] deactivation communication, the data on which such [...] communication is based is extracted from the Company’s systems through some queries performed periodically.” (see cited note, letter f); “the Glovo Platform is [...] managed by GlovoApp23 S.A. and provided as a standard tool to all companies in the group [...]. Therefore, some of the functionalities and, consequently, some items used for the deactivation and blocking of Couriers’ accounts in some countries are not [...] used in others. Regarding Italy [...] the two items subject to the request (i.e., “Many reassignments” and “Bad rating”) are not actually used in Italy, neither for blocking nor for deactivation, although they appear as potential reasons for blocking in our IT systems” (see cited note, letter g); “in any case, in order to avoid potential misuse of the Glovo Platform, the Company has requested GlovoApp 23 S.A. to deactivate such reasons in Italy” (see cited note, letter g); regarding the “Live Map” section, concerning the profile used to access, in particular how many similar profiles, with cross-country access possibilities, are overall active on the Glovo platform, the Company stated that “employees of Foodinho, S.r.l. as well as agents hired by COMDATA and MPLUS (hereinafter, “Live Ops Provider/s”), can access the “Live Map” section (permission “livemap.view”). [...] Regarding the

employees of Foodinho S.r.l. who are provided access to the "Live Map" section, the main teams recognized with the "livemap.view" permission are [...] Ops Team [...] Legal Team [...] BIN Data [...] IT Team [...] Teach Team [...] Live Ops Team [...] Finance Team [...] Expansion Team" (see cited note, letter j); "regarding external agents hired by COMDATA and MPLUS, the number of agents who have access to the "Live Map" section (permission "livemap.view") is [...]: COMDATA or Agents: 82 or Team Leads: 7 • MPLUS or Agents: 149 or Team Leads" (see cited note, letter j); "chat and email are the preferred channels used by agents to contact Couriers. Voice recording can only occur if the concerned agent needs to contact the Courier directly" (see cited note, letter m); "each team of agents has access only to conversations that occurred in their own country of competence [...] the retention period for conversations is 36 months" (see cited note, letter m); "the purposes pursued through the processing of voice recordings are: • Quality • Evaluate the service provided by the local provider (COMDATA and MPLUS); and • measure compliance with the process of agents when supporting Couriers. • Legal • have documentary support for all interactions made with a third party in case of complaint or lawsuit. • Manage and respond appropriately to requests made by competent authorities [...] and law enforcement agencies [...]. • Properly manage and document compliance with requests from data subjects, including requests for access and deletion of data under GDPR" (see cited note, letter m); "on December 23, 2022, the Company published a new privacy policy updating the retention periods [...]. The privacy policy shared [...] during the inspection of February 28-March 1 is the one currently published on the website. Subsequently, the Company realized that the privacy policy included in the contract with the Couriers had not yet been updated and therefore updated the retention period of that policy as well. Now the standard retention periods provided in both privacy policies are aligned and do not foresee retention periods exceeding 10 years" (see cited note, letter n); "with specific reference to geolocation data, they are stored on an AWS server located in Ireland. The stored data are associated only with the Courier's ID (pseudonymization). The data are necessary to accurately quantify the earnings of the Couriers and are also retained to justify the amount of invoices issued by the Couriers in case this is requested by the Tax Authorities or, in general, is necessary in proceedings or inspections regarding labor law" (see cited note, letter n); regarding the processing of biometric data of riders, it is specified that "Information related to facial recognition is provided to Couriers in the privacy policy and is also available at the link [...]" Facial Recognition - Italy (glovoapp.com). The software provided by Jumio Corporation ("Jumio") as data processor [...] is structured in two phases" (see cited note, letter p); "the first phase requires that the Courier receives a message on their mobile phone in which they are requested to scan an identity document (with a photograph) and subsequently take a "selfie." [...]. The data from the document will be checked against the information already provided by the Courier during the account activation. The photograph will be verified with the images contained in the document. The first "selfie" will be stored in the database and will be used as a reference for the next time facial recognition is necessary" (see cited note, letter p); "the second phase involves that, after the first recognition and randomly, the Courier will be asked to perform recognition through a "selfie." The Courier is also informed that recognition is mandatory and that failing to do so may lead to the deactivation of the account [...]. In any case, if the Courier does not perform the recognition or in case of failed recognition before the deactivation of the account, the calendar through which the Courier books slots will be blocked and the Courier will be asked to proceed with recognition to reactivate the calendar" (see cited note, letter p); "the processing of biometric data is necessary to fulfill the obligations regarding labor law, safety, and social protection assumed by the data controller pursuant to Article 23 [...] of the National Collective Labor Agreement for Riders" (see cited note, letter p); "the Company has experienced internal bugs that automatically closed the flow in the App [...]. These "closures" of the App resulted in a "FAILED" attempt from the backend perspective and, consequently, led to potential unjustified blocks of the Couriers' profiles. For this reason, it became necessary to suspend the Jumio verification process for some time" (see cited note, letter q); "the ongoing Jumio test consists of the following phases: 1. at the beginning of February, a first activation of facial recognition was carried out on 3.28% of active Couriers in Italy. 2. On February 20, it was extended to 18.33% of active Couriers. 3. On February 27, it was activated on a smaller

percentage of 15.55%. 4. On March 13, the test was extended to 32.61%. 5. Starting from March 27, Foodinho S.r.l. plans to reactivate facial recognition for all active Couriers. The test consists of requesting facial recognition once a day from all involved Couriers and checking for errors in the process" (see cited note, letter q).

On March 17, 2023, the Company specified that, "in fulfillment of the reserve included in the response referred to in letter J of the reply to the information request [...], the current number of employees who have the "livemap.view" permission active is 65." Following the receipt of a report on July 7, 2023, regarding the processing of rider data by Foodinho S.r.l. through the Glovo Couriers application, after gathering the proceedings, an additional inspection was carried out at the Company on July 26 and 27, 2023.

During the inspection, it emerged that: accessing the web portal <https://couriers.glovoapp.com/it/> to verify the content of the information provided to the riders, it was verified that "the link immediately below the access form, under the label: "By selecting the button, you accept" is not accessible, while the information present at the link at the bottom of the page, in the "Legal Notes – Privacy Policy" area, is updated to 2019 and is not available in Italian" [...] The information present at the appropriate link at the bottom of the "Terms and Conditions" document, which is instead updated to December 2022, was then viewed" (see minutes of July 26, 2023, cited p. 3);

accessing the Glovo courier app, it was verified that "even in this case the information is not accessible from the link "Privacy Policy," while it is accessible from the link "Terms and Conditions" (version of April 29, 2022)" (see minutes cited, p. 3);

regarding what is reported in the "Terms and Conditions," the Company clarified that "this document also includes some elements regarding the privacy information for couriers, particularly in paragraph 9 [...] concerning the communication of data to third parties and the categories of recipients in the context of using the Glovo platform. The text of the "Terms and Conditions" also includes a link to the full text of the general privacy information available on the website

<https://glovoapp.com/it/legal/privacy>. In this document, the company has indicated the characteristics of the communication of rider data to third parties [...]. The indicated documents must therefore be read together for a comprehensive overview of the processing carried out by Foodinho towards the couriers" (see minutes cited p. 3);

moreover, "the complete privacy information is also provided to riders within the collaboration contract" (see minutes cited p. 3);

with reference to the absence of the information for riders placed at the bottom of the access form on the relevant portal and in the app, the Company represented that "what was noted is probably caused by a broken link" (see minutes cited p. 3);

with reference to the failure to load the page of information for riders "the event is attributable to human error that occurred during the migration of the CMS from ButterCMS to Prismic. [...] after the report from the Glovo legal team following what emerged during the inspection, the content of the page has been corrected [...]. In the period between July 20 and yesterday, the content of the page was not correctly made available" (see minutes of operations carried out on July 27, 2023, p. 2);

"Glovo has a contract with Braze, aimed at sending commercial communications via email, from which the rider can unsubscribe through opt-out" (see cited minutes, p. 4); access was made to the backend of the Glovo courier app to verify the third-party SDKs used and the data communicated; it was verified that the data of the couriers sent to Braze includes the email address, the courierID, and the phone number (see cited minutes, p. 4); "the courier's phone number is sent to Braze only if present in the Glovo backend" (see cited minutes, p. 4); "in addition to the data explicitly sent from the Glovo Courier app to the third parties Braze, Firebase, mParticle [...] other data may be communicated through the SDKs provided by such third parties that the app uses" (see cited minutes, p. 3); it was also verified that the data sent to mParticle consists of the courierID and that the data sent to Firebase consists of the device characteristics, operating system, and the courierID (see cited minutes, p. 4); regarding the data related to the phone number "this data is communicated to Braze for riders operating in Italian territory" (see cited minutes, p. 2); regarding the communications sent by Braze to the couriers, "in addition to commercial topics, this entity can also send the riders communications related to the functioning of the service (so-called transactional). In any case, the rider can opt-out of receiving

messages" (see cited minutes, p. 2); as for the rating, the party represented that they are not aware of the meaning of this parameter used by the app (see cited minutes, p. 3); by accessing the backend of the Glovo courier app, to verify the data exchanged between the app and the backend, it was verified that "among the exchanged data, both the excellence score and the 'rating' are present" (see cited minutes, p. 3); by accessing, through the backend of the Glovo systems, the databases used by the Company, for the purpose of retaining information about the riders, the fields of the table related to the riders were displayed and the table related to the excellence score was viewed (see cited minutes, p. 3); "the rating is a variable used by the excellence score" (see cited minutes, p. 3); by accessing the database that stores the values related to the rating scores, to view the information present, it was verified that "the database, in the courier\_rating table, reports the values of the rating score, calculated based on user feedback. The table filtered on riders operating in Italy was displayed" (see cited minutes, p. 4); the export of the query performed on the riders operating in Italy was executed (see cited minutes, p. 4); the Company stated that "the value of the rating present in the courier\_rating table is a value, from 0 to 1, used by the company in relation to the so-called flex business model that does not apply in Italy. The value is generated anyway by the system even for riders operating in Italian territory [...] the value used by the app's backend is a data point left over from a previous version of the app, deprecated since 2021, and no longer used. Since then, the backend assigns a fixed value to the rating equal to 4.5 for each courier, by default" (see cited minutes, p. 4); furthermore, "the geolocation of the courier is performed only when the courier is registered for a slot (Countries with a freelance model) or is online on the app (Countries with a flex model). If during this time the courier puts the app in the background, the localization continues" (see cited minutes, p. 4); in order to verify the evidence presented during the inspection activity, the reporters accessed the backend of the Glovo Courier app. In particular, the response to the call to the backend systems' endpoint was displayed, with the credentials of an operator with operations qualification, and it was verified that the value of the rating variable is equal to 4.5 (see cited minutes, p. 4); "the app integrates Google Maps, which collects the rider's position according to its own timing, even when the rider is not active in the slot. This information is not used by the company, although it is received on its systems [...]. In 2021, moreover, the command used to start tracking the couriers had a bug, which may have generated continuous geolocation" (see cited minutes, p. 5); "the cases listed [by the Company] before the Tribunal of Palermo [labor section, on June 20, 2023] involve disconnection from the slot, possibly operated by the company, which does not entail a definitive blocking of the rider's account" (see cited minutes, p. 5); "the assignment of an order takes into account various elements including: the pickup and delivery point, the means of transport used, the maximum distance that can be traveled with a certain means of transport, any orders already assigned coming from the same store, the battery status of the rider's phone, the type of order based on the amount of cash in the rider's possession" (see cited minutes, p. 5). Lastly, with a note dated September 15, 2023, to resolve the reservations made during the inspection assessment, the Company represented that: "all suppliers act as data processors on behalf of Foodinho S.r.l. ('Glovo'). Therefore, the data of the couriers are disclosed and/or made available to such companies based on their respective Art. 28 GDPR agreements on

**\*\*Data Processing Agreement Established by the Parent Company\*\***

Glovoapp23, S.A. ("Glovo ES")" (see note 15/9/2023 cited, p. 1);

"Regarding the purpose of the processing and the legal basis identified by Glovo as the data controller for the ongoing processing activities (within which suppliers can offer their services), these are indicated below.

Braze: Glovo shares data with BRAZE in order to send transactional communications to riders, as well as commercial ones. The legal basis for the processing of personal data of riders is the execution of the contract with the couriers concerning transactional communications (which may include, for example, issues with the platform, warnings about new features of the App, how it works for new users); and, regarding commercial communications, the consent of the courier, or soft spam [...] this mainly concerns incentives and/or potential bonuses (e.g., notification that by booking a delivery slot on a certain day, the courier could earn more, or receive a bonus)" (see cited note, p. 1, 2);

"Glovo shares data with mParticle, which provides customer data platform (CDP) services that aggregate information (events) across various digital channels in order to send the right

communication to the right recipient. For example, in the case of an order to be delivered only by bicycle (i.e., because the delivery point is in an area where motorcycles are prohibited), mParticle collects such information and sends it to Braze to notify the order only to couriers with bicycles. The purpose of the underlying processing is to manage Glovo's activity [...]. The legal basis for this processing is the execution of the contract with the couriers. Additionally, Foodinho may also share information with mParticle for analytical purposes. In this regard, the legal basis for the processing is Glovo's legitimate interest in understanding how couriers interact with the App, developing new services, and analyzing the information derived from the services" (see cited note, p. 2); "We use the Crashlytics function to detect and manage abnormal crashes in the mobile and web applications used by couriers. Again, the legal basis for this processing is the execution of the contract with the couriers" (see cited note, p. 2, 3); With reference to the technical and organizational measures that the Company has adopted, also through the data exporter, to ensure data subjects a level of data protection adequate to European legislation, the "Transfer Impact Assessment conducted by Glovo ES as a contractor for the services provided by Google, mParticle, and Braze for Glovo" has been provided (see cited note, p. 3); "The use of JUMIO has been suspended and is being slowly re-implemented after correcting bugs and errors in the application itself. The software is now back in use throughout the country" (see cited note, p. 3).

## **\*\*2. The Initiation of the Procedure for the Adoption of Corrective Measures and the Company's Defenses.\*\***

On October 11, 2023, the Office notified the Company, pursuant to Article 166, paragraph 5, of the Code, of the alleged violations of the Regulation found regarding the data processing carried out through the digital platform used for the delivery of goods, with reference to Articles 5, paragraph 1, letters a), c), d), e), 6, 9, paragraph 2, letter b), 12, 13, 22, 25, 28, 32, 35, 88 of the Regulation; Articles 2-septies and 114 of the Code; Article 1-bis, Legislative Decree 26/5/1997, No. 152, introduced by Legislative Decree 27/6/2022, No. 104; Article 47-quinquies, Legislative Decree 15/6/2015, No. 81. With defensive memoranda sent on December 11, 2023, the Company, as a preliminary and prejudicial matter, contested the competence of the Authority "to decide issues related to the processing of personal data that occurs [...] through the Glovo platform and the Glovo and Glovo Courier apps [...] owned by GlovoApp23 SA [...] which also determines their operation and main functionalities."

Furthermore, the Company complained that the Authority's activity "is a photocopy of that undertaken ex officio on July 16, 2019, through the inspection at the offices of Foodinho [which concluded with] measure No. 234 of June 10, 2021." This would violate the principle of "ne bis in idem concerning the previous procedure opened against Foodinho and still sub judice," and for this reason, the Company requested the suspension of the procedure "at least until the judgment regarding the appeal of Measure No. 234/21 is concluded."

On the merits, regarding the individual allegations, the Company stated that:

With reference to the sending of communications to riders upon any status change, "even if the sending of such communication occurs automatically (being generated by the system at the moment of the courier's status change), in the case of the [deceased rider], the sending of the message was due to human error as the status change (deactivation) set by an operator did not correspond to any of the cases provided for by the system. On this point, while acknowledging the Authority's observations (and the echo of the national press) regarding the inappropriate content of the message, in light of the tragic circumstances of the case at hand, it is believed that what happened is not sufficient to constitute a violation of the aforementioned GDPR provisions" (see note 11/12/2023 cited, p. 10);

"Since the Company's opening in Italy in 2016, 120,857 couriers have been contracted. [...] it is evident how it is inevitable to resort to a certain degree of standardization of the automatic communication [that follows every status change]" (see cited note, p. 11);

"it should be noted that the sending of the automatic communication in question occurred following the death of the courier (after the decision to deactivate the account of the [rider]) and, therefore, the processing of data related to the sending of such a message must be considered excluded from the

scope of application of the GDPR” (see cited note, pp. 11-12);

“Regarding the alleged incompleteness of the information acquired during the Inspection [...], the Company has voluntarily chosen to follow a ‘layered’ approach”; [...] “the completeness and clarity of the information provided must be assessed as a whole” (see cited note, p. 13);

with regard to the absence “of an express reference to the ‘chats’ and ‘emails’ exchanged between the couriers and customer care operators [...] it is evident that if the contract revised and signed by the courier [...] contains [...] two express references to communications with a support channel, and in one of these a ‘written communication’ is mentioned, the courier is necessarily aware of the processing of such communications” (see cited note, pp. 13-14);

“based on an overall reading [...] within the provisions of the Terms and Conditions and the information pursuant to Article 13 GDPR [...], it is understood that the indication that geolocation is ‘exclusively associated with the service’ simply means that the activity in question is carried out to allow the courier to properly provide their delivery services” (see cited note, p. 16);

“regarding the processing of biometric data, the Company acknowledges that the language contained in the information on file was not timely updated following the temporary suspension of the biometric authentication mechanism due to the technical flaws encountered in July 2022. [...] the processing of biometric data of couriers has been restored starting from March, so the current version of the information is correct and updated” (see cited note, p. 17);

“Regarding the appendix of the information [...] attached to the Terms and Conditions [...], containing an appointment of the courier as data processor, it is specified that this is a material error. In fact, such language - which specifically refers to the billing obligations of the courier [...] is not applicable within the contractual relationship between Foodinho and the couriers in Italy [...]” (see cited note, p. 17);

“following the receipt [of the notification of violations], Foodinho realized the error and promptly updated the information available online [...], inserting in the applicable Terms and Conditions in Italy the correct version of Annex I, which refers to the processing carried out by the courier on behalf of Foodinho (i.e. as data processor) in the context of delivering orders requested by users through the Platform” (see cited note, p. 17);

“Foodinho does not carry out fully automated processing pursuant to Article 22 GDPR” (see cited note, p. 18);

“regarding the alleged violation of Article 1-bis of Legislative Decree 152/1997 on informational obligations in the case of the use of automated decision-making or monitoring systems, while maintaining the absence of automated decision-making processes pursuant to Article 22 GDPR [...] in order to further strengthen the transparency of its processes towards couriers, Foodinho has recently prepared specific information regarding some of the processing that involves partially automated processes, including the logic related to the Excellence Score and the criteria for slot assignment [...]. This information was adopted on May 18, 2023” (see cited note, p. 18);

“The number of human interventions that took place in the Excellence Score system and, in particular, those related to the manual increase of the capacity of a specific time slot [...] clearly constitutes ‘significant’ oversight [...]. And this is stated in the expert report” (see cited note, p. 20);

“even if one were to consider that the Excellence Score determines automated processing [...], there would be no violation of Article 22 GDPR since the applicability of this provision is expressly excluded in cases where ‘the decision is necessary for the conclusion or execution of a contract between the data subject and a data controller’ (Article 22, paragraph 2 GDPR)” (see cited note, p. 20);

“Even if the average number of deactivations emerging from the inspection documents is higher than that considered [in the expert report], this does not mean that the final output of the observation is not equal to or even greater; which confirms the value of human intervention concerning deactivations” (see cited note, p. 21);

“With regard to the other causes of disconnection that operate automatically (no show, out-of-area



position, geolocation deactivation, disconnection during the slot) identified during the inspection of July 26-27, 2023), it should be noted that these are not causes of account disconnection but only of slot loss” (see cited note, p. 21);

the expert report “provides evidence of human intervention in the grievance process; moreover, couriers are informed about the possibility of presenting their counterarguments” (see cited note, p. 21);

“the possibility, on the part of Foodinho, to remove the so-called Guaranteed in the slots corresponding to reassignments [...] represents a form of protection for users of the Platform and the proper functioning of the service, without actually representing a reduction of opportunities for...”

of the data controller in relation to the processing of data concerning the couriers, given that there is no employment relationship between the Company and the couriers” (v. nota cit., p. 28);

“in relation to the processing of data for the purpose of soft-spam or marketing, the Company asserts that it has a valid legal basis for such processing, as it is based on the legitimate interests pursued by the Company, which are not overridden by the interests or fundamental rights and freedoms of the couriers” (v. nota cit., p. 29);

“the Company has implemented appropriate technical and organizational measures to ensure a level of security appropriate to the risk, including encryption of personal data where applicable” (v. nota cit., p. 30);

“the Company has established procedures to regularly test, assess, and evaluate the effectiveness of technical and organizational measures for ensuring the security of processing” (v. nota cit., p. 30);

“the Company has appointed a Data Protection Officer (DPO) who is responsible for overseeing data protection compliance and acts as a point of contact for data subjects and the supervisory authority” (v. nota cit., p. 31);

“the Company has provided training to its employees on data protection and privacy matters to ensure awareness and compliance with applicable laws and regulations” (v. nota cit., p. 31);

“the Company maintains a record of processing activities as required by Article 30 of the GDPR, which includes details of the purposes of processing, categories of data subjects, and categories of personal data” (v. nota cit., p. 32);

“the Company has established a procedure for handling data subject requests, including requests for access, rectification, erasure, and data portability” (v. nota cit., p. 32);

“the Company has implemented a data breach notification procedure in accordance with Article 33 of the GDPR, ensuring that any personal data breaches are reported to the supervisory authority and affected data subjects where required” (v. nota cit., p. 33);

“the Company has conducted regular audits of its data processing activities to ensure compliance with the GDPR and other applicable data protection laws” (v. nota cit., p. 33).

private companies such as Foodinho, but only obligations to act on the part of the Member States” (see cited note, p. 28);

“as for the violation of Article 114 of the Privacy Code, this, containing a reference to Article 4 of the Workers' Statute, is not applicable to Foodinho as the couriers are not subordinate workers” (see cited note, p. 28);

“[c]ouriers are always free to accept or decline their availability for the various slots offered by Foodinho. Couriers decide autonomously if and when to work” (see cited note, p. 28);

“the use of the Platform to organize delivery services, including geolocation as well as the mechanism for assigning the Excellence Score for opening the slot calendar does not concern the exercise of a power of control and/or directive, as erroneously noted by the Authority, but belongs to the intrinsic characteristics of the couriers' activity and the performance of the service through the Platform itself” (see cited note, p. 29);

“even if - for mere hypothesis and without accepting - Article 4 of the Workers' Statute were to apply to Foodinho, the tools that the Authority considers forms of remote control of couriers would be entirely lawful as they would fall within the so-called 'ordinary tools' necessary for the purpose of rendering the professional service” (see cited note, p. 31).

During the hearing requested by the Company, held on December 21, 2023, it represented that “the Company, in a spirit of collaboration with the Authority, expressed the willingness to bring to the Authority's attention the initiatives it intends to propose regarding the processing of data relating to riders that were the subject of the notice of October 11, 2023, with a commitment to send by January 15, 2024.”

On January 15, 2024, the Company submitted further defensive memoranda regarding “the proposed commitments” and on this occasion stated that “starting from January 10, 2023 [to be understood as 2024], the so-called fixed rating value of 4.5 assigned to each courier has been eliminated” (see note 15/01/2024, cited, p. 12).

The Company also indicated some measures that “it proposes to adopt [...] specifically regarding the observations raised” with the notification of violations of October 11, 2023, committing to send the Authority, by February 29, 2024, an update regarding: “the adoption of a standard message specifically related to the suspension of the courier account in case of incidents,” “revision of the text of the standard message automatically sent for each change of status of the courier,” “revision of all current versions of the information provided to riders as well as the preparation of a ‘revised version of the specific information regarding the excellence score,’” the commitment to “improve transparency regarding processing involving geolocation and partially automated processes as well as in this last case the procedures available to couriers for disputes and complaints,” “the confirmation of the elimination, from the items potentially underlying a block or deactivation, those not applicable in Italy, namely ‘Bad rating’ and ‘Many reassignments,’” “further elements supporting the legitimacy of resorting to the processing of biometric data pursuant to Article 9.2, letter b) GDPR,” “a review and adjustment of the DPIA on facial recognition [and the preparation of] a DPIA relating to specific processing of personal data of couriers, such as geolocation and excellence score,” modifications “in order to establish country-based segregation levels to prevent the visibility of personal data of couriers in other countries, except in a few limited cases supported by documented necessity,” adoption of measures “in concert with [...] GlovoApp23 [...] in the six months following.”

On February 29, 2024, the Company submitted an additional memorandum stating that: the items “Bad rating” and “Many reassignments” [...] starting from today's date [...] will no longer appear within the Company's systems as potential reasons for a block or deactivation,” and that “it has eliminated those that, for operational reasons, are not used in Italy, specifically: Long delivery time; Courier not moving; High waiting time; B2B fraud; Data protection infringement,” it has carried out “the DPIA relating to specific processing of personal data of couriers, such as geolocation and excellence score,” it has made some modifications “regarding country-based segregation levels,” access permission to the Livemap platform “as of today [...] is not [...] active for employees of Glovo group companies located in other countries.” The Company represented that it has provided “the additional instructions given to Comdata call center operators regarding processing, [...] with regard to any disconnections of courier accounts made at the Company's indication” and that it has discontinued the service provided in Italy by Trizma.

The Company also provided copies of the standard messages, not yet implemented, to be sent to riders in case of account suspension due to incidents, as well as for each change of status of the courier. It also provided a copy of the revised version of the information for riders and the revised version of the specific information regarding the excellence score.

With reference to the processing of biometric data, the Company provided a revised version of the DPIA on facial recognition and represented that the

**\*\*Biometric data is currently stored for the entire duration of the employment relationship, although “[it is] currently discussing with Jumio the possibility of reducing such timeframes in light of the principle of proportionality.”\*\***

Finally, in the context of the impact assessment related to the excellence score and geolocation, the Company has stated its intention to “adopt a series of corrective measures, including a recalibration of the methods for calculating the Score that allows for the determination of the same by further reducing

the processing of data already used in the calculation process, eliminating the normalization process [...]. Furthermore, with reference to geolocation, the Company has indicated its intention to adopt “additional measures,” namely “to limit the number of teams and personnel authorized by Foodinho who need to access the informational data of the Courier available on ‘livemap.view’; [and] to retain geolocation data for a limited period.”

Lastly, in a note dated June 5, 2024, the Company communicated that it has modified the retention periods for biometric data to “three (3) months from the last order in the case of inactive couriers” and “three (3) months from the deactivation of the account in the case of couriers whose accounts have been deactivated for reasons not related to facial recognition.” With reference to active couriers, “the Company will retain their Biometric Data for the entire duration of the collaboration with Foodinho. In this way, active couriers will be able to easily access and use their account for the entire duration of their collaboration with the Company.”

### **\*\*3. Preliminary Issues: Competence of the Authority and the Principle of Ne Bis in Idem.\*\***

Preliminarily, Foodinho s.r.l., with its defense submissions dated December 11, 2023, contested the competence of the Data Protection Authority concerning the processing of personal data of couriers carried out through the operation of the digital platform owned by GlovoApp 23 SA, based in Spain. This contestation, for the reasons that follow, is unfounded. The Company, in fact, processes data related to personnel responsible for the delivery of goods, based on a standard contract that, for the execution of the work performance, provides for the activation of an account on the Glovo Courier application, which can be accessed using credentials and passwords provided by the Company itself (see Annex 1, submissions dated 29/2/2024).

The data processing of couriers operating in Italy is therefore carried out through the platform by the Company (Foodinho s.r.l.), as the data controller, that is, the entity that decides the purposes and means of the processing itself (art. 4, no. 7 of the Regulation), as highlighted in the information provided to couriers (see Annex 2, p. 4, submissions dated 29/2/2024, “Data Controller • Foodinho, S.R.L., Via Giovanni Battista Pirelli 31, 20124, Milan, Italy”) and in the agreement entered into with GlovoApp 23 SA, regarding the use of the platform, where Foodinho s.r.l. expressly assumes the role of data controller for the processing carried out through it, and the parent company GlovoApp (given that currently the parent company is no longer GlovoApp23 SA, but Delivery Hero SE) is designated as the data processor (see Annex 3, inspection report dated 13/12/2022, Franchise agreement between Glovoapp23 S.L. and Foodinho s.r.l., 1/10/2019, point 18 “Personal Data Processing and Protection”).

Therefore, regarding the processing carried out in Italy by Foodinho s.r.l., as an independent data controller, the only competent authority is the Data Protection Authority. In this specific case, in fact, contrary to what was considered, still preliminarily, in the defense submissions, the cooperation procedures provided for by the Regulation (Chapter VII, Section I) do not apply (on the contrary, during the investigations that led to provision no. 234 of 2021, the Authority found evidence of some processing of a cross-border nature and promptly informed the Agencia Española de Protección de Datos - AEPD).

The definition of “cross-border processing” contained in the Regulation — the execution of which constitutes the prerequisite for the application of the aforementioned procedures (see art. 56, par. 1 of the Regulation) — refers to two distinct hypotheses. The first concerns the “processing of personal data that takes place in the context of the activities of establishments in more than one Member State of a data controller or processor in the Union where the data controller or processor is established in more than one Member State” (art. 4, no. 23, lett. a) of the Regulation).

The second hypothesis refers instead to the “processing of personal data that takes place in the context of the activities of a single establishment of a data controller or processor in the Union, but that has a substantial effect or is likely to have a substantial effect on data subjects in more than one Member State” (art. 4, no. 23, lett. b) of the Regulation).

The investigation carried out by the Authority does not fall within either of the two cited cases: in fact, it

did not concern data processing carried out by GlovoApp23 SA, based in Spain, towards data subjects operating on national territory and in any case “in more than one Member State,” nor does the Italian company appear to be an “establishment” of the parent company since Foodinho s.r.l. is an independent legal entity with its registered office in Italy (see also, in this regard, Recital 36 of the Regulation).

**\*\*I. The treatments subject to the control activity\*\***

initiated by the Authority were indeed carried out in execution of contracts entered into by the Italian company (contracts that therefore defined the framework for the purposes and methods of the treatments themselves), which excludes their possible cross-border nature, as erroneously suggested by the Company.

In this specific case, therefore, Article 55, paragraph 1, of the Regulation applies, which establishes the competence of national supervisory authorities to exercise the powers and fulfill the tasks assigned to them by the Regulation in relation to the treatments carried out on national territory by the entity established there, for which it acts as an autonomous data controller (see also Recital 122 of the Regulation). Furthermore, the participation of Foodinho s.r.l. in a corporate group that also includes the Spanish parent company GlovoApp23 SL does not affect the competence of the Garante, pursuant to EU Regulation 2016/679, regarding the treatments carried out by the Italian company on individuals working in Italy, nor does it imply the loss of legal personality of Foodinho, as an autonomous center of attribution.

As already clarified by the Authority, the existence of a group of companies does not result in the configuration of a new center of attribution of legal relationships that overlaps with the individual companies that are part of the group.

Participation in a corporate group, therefore, does not result in a legal-formal unification of the involved corporate entities, which maintain their distinct legal personality (see Provision 5/12/2022, no. 427, 3.1., web doc no. 9856694; in a similar sense, see Guidelines 07/2020 on the concepts of data controller and data processor under the GDPR, version 2.0, adopted by the European Data Protection Board (EDPB) on July 7, 2021, p. 32, point 89: “within a group of companies, a company other than that of the data controller or data processor is a third party, even if it belongs to the same group to which the company acting as data controller or data processor belongs”).

In conclusion, for the reasons stated above, no provision of the Regulation assigns competence to the Agencia Española de Protección de Datos (AEPD), regarding the treatments described in the preamble, subject to verification by the Italian Authority, as instead believed by the Company (in a similar sense,

see Court of Cassation, ord. 29/9/2023, no. 27189, concerning the previous provision adopted by the Garante against the Company - on which more extensively below: "Even in the face of data processing through a platform, the treatments carried out by an Italian company operating in the national territory, with its own structural and negotiation autonomy, must (and indeed should) be kept distinct from those carried out by a supranational parent entity (in this case GlovoApp23). What was carried out by Foodinho, according to the factual assessment inferred from the challenged judgment, was (and is) a data processing autonomously managed by the Italian company as controller, based - it is understood between the lines - on the contracts entered into from time to time with the riders").

From a different perspective, regarding the qualification of the procedure in question as a "photocopy [of the initiative] undertaken ex officio on July 16, 2019 [by the Garante]," it is noted that such an assumption has no legal or factual merit. It is first emphasized that, in order to allege the violation of the prohibition of bis in idem, it is generally necessary for certain specific conditions to be met simultaneously: 1) that the subject subjected to sanction is the same; 2) that the judged fact coincides in the two different proceedings; 3) that one of the two proceedings has concluded with a definitive sanction (on the necessary presence of such conditions, see ECHR, judgment A and B v. Norway, November 15, 2016, which has superseded what was previously established by the Grande Stevens and others v. Italy judgment, March 4, 2014; Court of Justice, March 20, 2018, Case C524/15 Menci; see also Case C536/16 Garlsonn Real estate-Ricucci, Joined Cases 596/16 and 597/16 Di Puma and Zecca).

In this case, the proceedings were initiated by the Garante at different times and on different grounds against Foodinho s.r.l.

Regarding the provision of June 10, 2021, no. 234 (web doc 9675440), it is specified that it was challenged by the Company and initially annulled by the court of first instance (Trib. Milano, judgment no. 35612 of 12/4/2022). However, the Court of Cassation subsequently ordered the annulment of the judgment of the Milan Court (Cass., I civil section, ord. no. 27189 of 22/9/2023). As of now, the Authority's provision has become unchallengeable, following the failure of the Company to resume the case before the competent court.

In this case, it is evident that there is no identity of the fact in the two proceedings and thus

the risk of bis in idem cannot be alleged, even in the abstract.

The two proceedings concern different treatments; therefore, there is no identity of the fact, that is, there is no historical-natural correspondence between the subject matter of the two proceedings, considering all the constitutive elements (conduct, event, causal link) and taking into account the circumstances of time, place, and person (see Constitutional Court, judgment 8/3/2018, no. 53 on the notion of idem factum for the purposes of the operability of the principle of ne bis in idem, in criminal matters; this decision refers to Constitutional Court 21/07/2016, no. 200 to which it refers).

always in the criminal law context and always with reference to the notion of idem factum, Court of Cassation, Criminal Section III, ruling of February 7 – March 22, 2023, no. 12005).

The provision no. 234 of 2021 indeed concerned the processing of personal data of riders operating in Italy carried out by the Company as established during the inspection on July 16 and 17, 2019. The subject of the provision, therefore, pertains to the data processing carried out by the Company up to that point; the present proceeding, on the other hand, focuses on the data processing carried out by the Company, as established during the inspections conducted on December 13 and 14, 2022, February 28 and March 1, 2023, and July 26 and 27, 2023, and analyzes types of processing, although related to the employment relationship with the riders, which were not evaluated in the first proceeding (in particular: the processing of biometric data, which, as the Company itself highlights, is only the subject of the present proceeding, as well as the processing consisting of the communication of data to third parties, the deactivation and blocking of the riders' accounts, the processing in violation of Article 47-quinquies of Legislative Decree 81/2015 and Article 1-bis of Legislative Decree no. 152/1997).

These are, therefore, proceedings through which checks were carried out regarding different processing activities, having a subject that is not concretely overlapping: the processing considered, therefore, relates to different time periods, carried out against different data subjects (given the partial and physiological turnover of the riders), whose processing methods have been modified over time by the Company (by way of example, regarding the documents containing the information notice, the retention periods of the collected data, the impact assessment, the methods of carrying out automated processing) and regarding which the Authority has examined aspects not coinciding with those subject to the previous proceeding.

The Company itself, in its defensive writings of December 11, 2023, acknowledged that the new proceeding presents elements that distinguish it from the one that led to the adoption of provision no. 234 of 2021 (see note 11/12/2023, pp. 8, 9). In particular, in fact, within a schematic table in which it listed the motivated allegations made by the Authority, the Company specified, among other things, that:

- the allegation concerning Article 5, paragraph 1, letters c) and d) of the Regulation in provision no. 234 of 2021 “was not raised because the case of [S.G.] that determined it had not yet occurred. Moreover, the new inspection finding arose precisely from the news disseminated by the main newspapers regarding the case of the deceased courier”;
- with reference to Articles 5, paragraph 1, letter a) and 13 of the Regulation, the processing of biometric data “was not carried out in 2019”;
- regarding Article 5, paragraph 1, letter e) of the Regulation, the violations alleged in the notification related to the present proceeding are “declined with respect to the current situation and the results arising from the new accesses”;
- with reference to Article 22, paragraph 3, of the Regulation, with the notification related to the present proceeding “in addition to the processing related to the excellence scoring system of the couriers, the

procedure for deactivation (grievance) and blocking of the account upon the occurrence of certain predetermined conditions is also considered an automated processing of personal data. This last consideration stems from the case of Mr. [S.G.] based on which the Authority initiated the second inspection access”;

- regarding Article 47-quinquies of Legislative Decree 81/2015, the allegation in question is “declined on the Galassi case and on the hypotheses of grievance for reassignment of the order”;
- “in addition to the previous Provision no. 234/21, in the new proceeding, the violation of Articles 5, paragraph 1, letter a), 9, paragraph 2, letter b) of the GDPR of December 11, 2023 and Article 2-septies of the Privacy Code in relation to the processing of biometric data of the couriers is contested. This is because before 2020 this processing was not carried out”;
- “compared to the previous proceeding, the sending of the couriers' data to third parties within the processing activity carried out through the Platform using systems such as Google Firebase, Braze, and mParticle is highlighted”.

It emerges, therefore, how the Company itself has perfectly perceived the multiple aspects of novelty and diversity of the present proceeding, compared to that initiated in 2019 and concluded with provision no. 234 of 2021.

Conversely reasoning - and thus attempting to follow the interpretation of the *ne bis in idem* principle that has been provided by the Company in the absence of any legal basis - one would arrive at the conclusion that individuals against whom the Authority has already adopted a previous provision that identified the illegality of specific processing could no longer be subjected, by the same Authority, to investigations aimed at examining other processing of data similar to those for which a provision has already been adopted.

The evident harm related to the protection of rights that would thus arise (see the aforementioned Constitutional Court, ruling 8/3/2018, no. 53, which clarifies that “the jurisprudence of legitimacy appears firm in considering [...] that, with regard to the permanent crime, the prohibition of a second judgment concerns only the conduct carried out in the period indicated in the indictment and established by the irrevocable judgment, and not also the continuation or resumption of the same conduct at a later time, the

which constitutes a “historical fact” different from that covered by the judgment, for which there is no impediment to proceed (among many, Court of Cassation, sixth criminal section, judgment of March 5 - May 15, 2015, no. 20315; third criminal section, judgment of April 21 - May 11, 2015, no. 19354; second criminal section, judgment of July 12 - September 13, 2011, no. 33838).

It is also deemed appropriate to note that the references to Article 83, paragraph 3 of the Regulation and to the Guidelines 04/2022 on the calculation of administrative monetary sanctions under the GDPR adopted by the EDPB on May 24, 2023 (which the Company uses to support its reconstruction regarding the principle of *ne bis in idem*) are not at all relevant.

In particular, the Company has argued, with reference to Article 83, paragraph 3 of the Regulation, that “the identification of the constitutive elements of the right to *ne bis in idem* is significant also in the context of the GDPR, where, first of all, Article 83 (3) establishes the prohibition of cumulation between individual sanctions” (see note 11/12/2023, p. 9), thus claiming that the principle would apply in paragraph 3 of Article 83 of the Regulation.

From the reading of the cited provision (“If, in relation to the same processing or to related processing, a data controller or a data processor violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation”), it is instead evident how it regulates a special form of legal cumulation of administrative monetary sanctions, in cases where the processing (or related processing) violates various provisions of the Regulation. It is therefore incomprehensible how such a reference could support the Company’s reconstruction.

Furthermore, the reference to the aforementioned EDPB Guidelines is neither useful nor correct to support the Company’s thesis; this is because the EDPB, analyzing Article 83, paragraph 2, letter e) of

the Regulation, specified that, in calculating the sanction, the supervisory authority may consider the existence of relevant previous violations committed by the data controller as an aggravating factor.

In this regard, the cited Guidelines also emphasize that “the absence of previous violations [...] cannot be considered a mitigating factor, as compliance with the GDPR is the norm. If there are no previous violations, this factor may be considered neutral” (see point 94 of the cited Guidelines).

Therefore, the commission of previous violations falls among the circumstances that the Authority must assess when adopting a measure regarding unlawful processing (even more so if they are relevant violations, see point 88 of the cited Guidelines “violations having the same subject matter must be considered more important, as they are closer to the violation currently under investigation, especially when the data controller or the data processor has previously committed the same violation (repeated violations). Therefore, violations having the same subject matter must be considered more relevant than previous violations concerning a different matter”).

The cited Guidelines, therefore, highlight the importance, for the purposes of increasing the administrative monetary sanction, of evaluating previous unlawful acts against the controlled subject, even more relevant if pertinent (see point 87 of the cited Guidelines “For the purposes of Article 83, paragraph 2, letter e), GDPR, previous violations having the same or different subject matter from that under investigation could be considered ‘relevant’”). It is therefore fully in line with the system that a supervisory authority may assess the conduct of a subject, even in cases where it has already adopted a previous measure against the same subject.

Finally, it is recalled that the Authority, in light of Article 83, paragraph 1 of the Regulation, when adopting administrative monetary sanctions, ensures that they are “effective, proportionate, and dissuasive” with regard to the specific case.

In this regard, following the examination of the statements made to the Authority during the proceedings as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations that are not compliant with the regulations on personal data protection.

In this regard, it is highlighted that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Authority and interruption of the execution of the tasks or the exercise of the powers of the Authority”.

Considering that during the proceedings documents were produced in English, among others, not all accompanied by a translation into Italian, it is recalled that the documentation produced in the context of proceedings initiated by the Authority for the protection of personal data must be drafted in Italian as required for procedural acts by Article 122 of the Code of Civil Procedure, also in light of the more general regulatory provision (Article 1, Law December 15, 1999, no. 482, Rules on the protection of linguistic minorities) which establishes the Italian language as the official language of the Italian Republic.

4.1. Violation of the principles of fairness, adequacy, relevance, and accuracy of processing (art. 5, par. 1, lett. a), c) e d), of the Regulation).

Violation of the principle of privacy by design and by default (art. 25 of the Regulation).

In substance, following the investigative activity, it was established that the Company, on 3/10/2022, sent a message to the account of [S.G.] with the following content: “Important: account deactivated. Dear [S.G.], Glovo intends to offer an optimal experience to its couriers, partners, and customers. To maintain a healthy and fair platform, it is sometimes necessary to take action when one of these users does not behave correctly. We regret to inform you that your account has been deactivated for non-compliance with the Terms and Conditions. If you still have pending payments at the end of the next billing period, you will receive the details of the last order for billing. If you need to contact us for any reason, please use the form available on the couriers' website” (see screenshot on Repubblica, Florence news, 4/10/2022).



Based on the statements from the Company, the head of external and institutional relations, [...], at 17:57 on 2/10/2022 received an ANSA news item dated 2/10/2022 ("Car-scooter collision in Florence, the victim is a rider," where it is specified later in the text that the unidentified young man was making deliveries on behalf of Glovo) along with other representatives of Glovo.

The next day, 3/10/2022, at 9:01, the Operations Team manager contacted an operator with the following instruction: "I would say to do as we did for the others. We put it DISABLED and leave a note in the description" (minutes 28/2/2023, p. 3 and Annex 6).

The operator stated that he "received the instruction to proceed with the deactivation verbally from the Operations Team Manager, [...], and that he is not aware of the procedure for the automatic generation of the email as it is the responsibility of the parent company Glovoapp23 SL" (inspection report 14/12/2022, p. 8).

In this regard, the Company also stated that, "after the account [of S.G.] was manually deactivated, the message regarding the account deactivation was sent automatically, by the system to the Courier, by mistake, as this deactivation did not originate from any violation of the Terms and Conditions, and there was also no standard response ad hoc for such a dramatic situation" (Note lifting of reservations 23/12/2022, lett. B.).

Furthermore, "the communication received by Mr. [S.G.] is transmitted automatically when the system registers a change of status. In fact, Mr. [S.G.] should not have received any communication regarding the deactivation or blocking of the account as it was not requested based on the specific circumstances of the case" (Note lifting of reservations cited, lett. C.).

To confirm this, the Company specified that the "communication received by Mr. [S.G.] [...] is sent, in addition to one of those [provided for grievance and blocking procedures], upon any change in the rider's status. [...] In the case of Mr. [S.G.], given the circumstances, the sending of this communication is due to human error" (inspection report 28/2/2023, p. 7).

Based on the statements in the records, it therefore emerges that the sending of the message regarding the deactivation, received on S.G.'s account two days after the fatal incident, did not depend on "a human error." In fact, although the deactivation was carried out manually after the news of the rider's death, the message received on the account was sent due to the configuration of the system used by the Company, set up in such a way as to automatically send a standard message upon any change of status, regardless of the reasons for the deactivation itself.

Therefore, following the investigation regarding the specific case concerning the rider who died in 2022, it emerged that the automatic sending of a standard message pertains to the entire pool of riders.

The automatic sending of the message upon each change of status is found to be in violation of the principles of accuracy, adequacy, relevance, and correctness in the cases, in which, according to the statements made, the deactivation of the account is carried out, namely in the cases of grievance/deactivation and blocking.

In fact, although it is possible, based on what the Company stated, to proceed with the reactivation of the account both in the case of deactivation and blocking - if the rider presents counterarguments deemed suitable or takes the required actions - the standard message indicates that the disconnection has a definitive character ("your account has been deactivated for non-compliance with the Terms and Conditions"), without any reference to the possibility of taking action to modify the occurred change of status (rather it specifies that "at the end of the next billing period you will receive the details of the last order for billing").

Finally, considering that the processing carried out, through the sending of the above standard message, based on the configuration of the system, occurs automatically and independently of possible concrete cases, it appears that the Company has not implemented the principles of data protection, from the design stage and by default.

The correct observance of these principles indeed requires the data controller to implement measures aimed, among other things, at "providing transparency regarding the functions and processing of personal data" and "allowing the data subject to control the processing of their data" (see recital 78 of the Regulation).

The employer must, therefore, adopt measures aimed at ensuring compliance with the principles of

**\*\*Data Protection by Design and by Default\*\* (Art. 25 of the Regulation)**

Throughout the entire data lifecycle, “incorporating into the processing the measures and guarantees adequate to ensure the effectiveness of the principles of data protection, the rights and freedoms of the data subjects” and ensuring that “only the processing strictly necessary to achieve the specific and lawful purpose is carried out by default,” also with regard to the data retention period, “in all phases of the design of processing activities, including contracts, tenders, outsourcing, development, support, maintenance, testing, storage, deletion, etc.” (“Guidelines 4/2019 on Article 25 - Data Protection by Design and by Default,” adopted by the EDPB on 20/10/2020).

In the case of the deceased rider, the sending of the above message constituted processing in violation of the principles of accuracy, adequacy, relevance, and fairness, considering that the disconnection did not occur due to a violation of the Terms and Conditions of use of the platform, as stated by the Company, but rather for the purpose of “preventing third parties from using the account” (see note 27/12/2022, letter B). On the other hand, it is the Company itself that stated that the deceased rider “should not have received any communication regarding the deactivation or blocking of the account as it was not requested based on the specific circumstances of the case.”

Furthermore, based on the excerpts of messages exchanged on the SLACK messaging system, limited to what was made available to the Authority, it emerges that in similar (if not identical) situations, the Company had adopted the same procedure (the Team Operations manager specified to the operator: “I would say to do as for the others”).

During the proceedings, the Company objected that the challenge made by the Authority would be unfounded as the processing related to the sending of the message via email, after the rider's death, “must be considered excluded from the scope of application of the GDPR” since the Regulation “does not apply to deceased persons” (see defense briefs 11/12/2023, pp. 11-12).

This argument cannot be accepted. In general terms, the Regulation, in Recital 27, has delegated to Member States the possibility of providing rules regarding the processing of data relating to deceased persons (so much so that the definitions of “personal data” and “processing” contained in Art. 4 of the Regulation do not specify anything in this regard). The Code, in Art. 2-terdecies (Rights concerning deceased persons), establishes that the rights attributed to the data subject (from Arts. 15 to 22) can be exercised by those who have a legitimate interest or act in the interest of the data subject, as their representative, or for family reasons deserving of protection. Thus, our legal system recognizes, under certain conditions, the protection of personal data of deceased persons. The Authority has ruled on this point, emphasizing how “the rights referred to in Articles 15 to 22 of the GDPR [...] materialize in the right to request that the data controller complies with the sectoral provisions regarding the protection of personal data and the ‘principles applicable to the processing of personal data’ in compliance with the conditions of ‘lawfulness of processing,’ as far as compatible” (see provision no. 2 of 10/1/2019, at [www.gpdp.it](http://www.gpdp.it), web doc no. 9084520. On data of deceased persons see also provision no. 118 of 7/4/2022, there, web doc no. 9772545; no. 90 of 23/3/2023, there, web doc no. 9888188)” (Provision no. 82, 22/02/2024, web doc no. 9996647).

In this specific case, the Authority, starting from the text of the email sent by the Company to the rider's user base, after the fatal incident involving him, made known to the press by the family of the young man, initiated a control activity starting from the methods by which the Company disconnected from the platform and communicated this to the data subject, through the email communication of 3/10/2022. The processing activities subject to the inspection concern therefore the overall group of riders who perform delivery activities on behalf of the Company.

It is noted that the Company, during the proceedings, after the notification of the violations made by the Authority, developed a standard message to be sent automatically in case of deactivation occurring due to “incidents” and a message to be sent automatically for each change of status, thus distinguishing the different cases of deactivation and announcing a further communication that will contain the details of what was contested to the rider and indications on how to provide clarifications (see note 29/2/2024, Annex 1). Although, at this time, such programmed changes have not been

concretely implemented by the Company.

Furthermore, the observations made by the Company, in the defense briefs, regarding the occurrence of “human error” cannot be accepted, since - as argued above - the sending of the message to the deceased rider occurred automatically, as indeed happens with every change of status. Nor can the circumstance that the contracted riders are numerous, resulting in “inevitably resorting to a certain standardization of automatic communication,” be considered sufficient to affect the necessity of adopting messages, even standardized, which are nonetheless differentiated and complete with information regarding the methods for revoking the disconnection or blocking (an activity that the Company has committed to carry out).

Finally, it is noted that, at this stage, no modifications have yet been made regarding the sending of standard messages; therefore, without prejudice to any assessment regarding the compliance with data protection principles of the new messages prepared by the Company (currently provided exclusively in English), it follows that the Company has violated, in the terms indicated, Articles 5, paragraph 1, letters a), c), and d) (principles of fairness, adequacy, relevance, and accuracy of processing) and 25 (data protection by design and data protection by default) of the Regulation.

#### 4.2. Violation of the obligation to provide information (Article 13 of the Regulation).

With reference to the documents containing the information on data processing prepared by the Company acquired during the investigation, it is noted, preliminarily, that despite the plurality of them, the purpose of Article 13 of the Regulation cannot be considered effectively achieved.

The mere preparation of a plurality of informational documents, in fact, cannot be considered, as the Company erroneously claimed, an expression of a “layered approach” and, therefore, an element sufficient in itself to demonstrate compliance with Article 13 of the Regulation.

The Authority's assessments regarding the multiplicity of informational documents prepared by the Company stem, among other things, from the consideration of the negative effects arising from the confusion generated by heterogeneous and non-corresponding informational contents to the notion of “layered information” provided by the Guidelines on transparency pursuant to Regulation 2016/679 adopted by the Article 29 Working Party on November 29, 2017, and amended on April 11, 2018, which have been endorsed by the EDPB, but which are found to be discordant and absolutely uncoordinated, as will be illustrated below.

In this regard, the reference to Article 12, paragraph 7 of the Regulation, which specifies that in order to provide an “overview of the intended processing” “the information to be provided to data subjects under Articles 13 and 14 may be provided in combination with standardized icons,” made by the Company, appears irrelevant, since the subject of examination and contestation by the Authority was not the reference to any standardized icons, but the numerous and uncoordinated documents that the Company has prepared, from the examination of which it emerged that it has confused the need for quality of the information to be provided to data subjects regarding the processing with the quantity of documents that should contain the same.

Furthermore, the aforementioned Guidelines on transparency specify that “In light of the amount of information to be provided to the data subject, in a digital environment, the data controller may follow a layered approach, opting for a combination of methods to ensure transparency. To avoid information overload, the Group particularly recommends the use of layered privacy notices/information to link the various categories of information to be provided to the data subject, rather than including all information in a single notice on the screen” (see cited Guidelines, point 35). Among the aspects that must be considered to assess whether the controller has fulfilled the obligation to inform data subjects, “the consistency of the information both between the different layers of a [...] notice and within each individual layer” is indicated (see cited Guidelines, point 35).

The layered approach, therefore, entails that, at a first level of information (i.e. “the main method by which the controller addresses the data subject,” see cited Guidelines, point 36), further layers of specification regarding the data processing carried out follow. This approach should therefore allow the data subject to understand more clearly how their data is processed, avoiding an excess of details that may be useful to know, in certain cases, by accessing the further level of the notice.

From the examination of the documents prepared by the Company, however, the absence of a

coherent “layered approach” emerges, as well as the total lack of a real content coordination among the various informational documents, resulting in the consequent impossibility for the data subjects to have a clear (and reality-adherent) picture of the variety of processing that the Company carries out on their data collected in the context of the employment relationship.

Thus, not only from the examination of the individual documents but also from the joint examination of the same, it emerges that the Company has not fulfilled the need to provide the data subjects with the necessary complete information, but it is also evident that it has not even managed to fulfill the need to provide the aforementioned information in a concise, transparent, intelligible, and easily accessible form (cf. cited Guidelines, point 34).

4.2.1. The notice taken from the Company’s website and the document containing “Terms and Conditions of Use of the Glovo Platform for Couriers,” provided by the Company during the inspection on December 13 and 14, 2022.

The document containing the notice, undated, provided by the Company during the inspection on December 13 and 14, 2022, taken from its website (<https://glovoapp.com/it/legal/privacy-couriers/>) (Annex 7 of the minutes of December 14, 2022), which has the same content as the notice attached to the copies of standard contracts provided during the first inspection (Annex 2 to the minutes of December 13, 2022), must be considered drafted in violation of Articles.

5, par. 1, lett. a) (principle of transparency and principle of correctness), 12 and 13 of the Regulation: the information contained in the aforementioned document is not provided “in a concise, transparent, intelligible, and easily accessible form,” nor does it provide “all the information referred to in Articles 13 and 14.” In the information notice under examination, in particular, the categories of data of the riders that the Company processes are not fully identified, to the extent that point 2 within it, dedicated to “data collected,” introduces them with an exemplary statement (“below, we list an example of data we collect and the related purposes of processing”); among others, data on order management is not indicated, nor are data related to chats and emails exchanged between riders and customer care operators, data that, instead, as emerged during the inspection, the Company processes.

Regarding the categories of data, the Company’s assertion that “the various informational documents provided to couriers in the context of the relationship with Foodinho should not be understood as distinct notices, but should instead be considered as a whole” and “to start collaborating with the Platform, couriers are required to download the relevant app and accept the Terms and Conditions where [...] such categories of data are expressly mentioned” is of no merit for the reasons stated above (see par. 4.2). In particular, and in addition to what has been stated above (see par. 4.2), it is noted that the information notice under examination does not refer to any further document for the complete indication of the data processed, not even to the “Terms and Conditions.”

Furthermore, to assert, as the Company does, that “the courier is necessarily aware of the processing of such communications for support purposes” regarding the data related to the “chats” and “emails” exchanged between couriers and customer care operators, since the contract signed by the riders to which the notice is attached refers to the “existence of exchanges with a ‘support’ function” (see note of 11/12/2023, p. 13, 14), is not shareable: as already emphasized, in fact, with the notice, the data controller must provide the data subject with all information in a concise, intelligible, and easily accessible form, not generic information that must be interpreted, inferred, and sought within the various relevant documents that define the relationship with the rider.

Moreover, in this regard, despite the Company stating that information regarding the processing of data related to the “chats” and “emails” exchanged between couriers and customer care operators is “also provided during the interview preceding registration on the Platform” (see note of 11/12/2023, p. 14), it is acknowledged that no evidence of this has been produced before the Authority. The information notice under examination is also not clear and intelligible concerning the identification of the conditions of lawfulness and the purposes of processing (which, among other things, have been included in the same section), among which there is often no coordination: still within point 2, “Data collected,” where the respective legal bases and purposes of processing for the selected data are indicated, in fact, it is not possible to distinguish one from the other.

Furthermore, although multiple legal bases are indicated within the aforementioned point 2, in point 4 - "purposes and legal basis for data processing" - it is specified that "the data will be processed exclusively for the purpose of correctly executing the contractual relationship between the parties," thereby making evident the lack of alignment between the two sections within the same document.

The Company's reference to the principle of accountability concerning the objections raised by the Authority, with reference to Article 13 of the Regulation, is then entirely irrelevant. The importance attributed by the Regulation to the principle of accountability does not entail the diminishing of the Authority's powers regarding the assessment of the compliance of a data controller's conduct with the personal data protection regulations, not even concerning the obligation that rests on the controller to provide information on processing pursuant to Article 13 of the Regulation. The subject of the objection regarding information on the conditions of lawfulness and the purposes of processing, among other things, did not concern, as the Company seems to believe, "the format and methods" by which such information was provided, but rather the fact that the information provided does not meet the requirements of completeness and clarity required by the regulations (Articles 12 and 13 of the Regulation) and instead generates confusion and uncertainty for the data subject regarding the processing of their personal data.

Still referring to the conditions of lawfulness of processing, concerning the indication, within point 4, of the "explicit consent of the courier" as the legal basis for processing, it is first observed that the reference to the rider's consent for the processing of unspecified data is so generic that it does not allow for the identification of the data for which the Company considers the same to be a suitable condition of lawfulness for processing. It is also noted that, as a rule, consent within the employment relationship, given the asymmetry between the parties, does not constitute a condition of lawfulness for processing concerning data related to the employment relationship (see Opinion No. 2/2017 of the Article 29 Working Party, par. 2 "It is important to recognize that employees...").

rarely find themselves in a position to freely grant, refuse, or revoke consent for data processing, given the dependency arising from the employer/employee relationship. Except in exceptional situations, employers must rely on a legal basis other than consent." In this regard, the Company's assertion regarding the "loss of any reason for being" of this dispute, as "the qualification of the relationship between the Company and the couriers proposed by the Authority [...] in terms of an employment relationship is not clearly correct" (see defensive memoranda 11/12/2023, p. 15), is not shareable since, as the Article 29 Working Party itself has emphasized, the issues arising from qualifying consent as an adequate legal basis do not only concern the employment relationship but any working situation where there is an imbalance between the position of the person providing the work and that of the entity for which the work is performed (see in particular Opinion No. 2/2017 of the Article 29 Working Party, para. 2 "With the term 'employee', in this opinion the Working Party does not refer exclusively to individuals subject to an employment contract recognized as such under the applicable laws. In recent decades, new business models served by different types of employment relationships, particularly the use of freelance workers, have become more common. This opinion aims to address all situations of employment relationships, regardless of whether such a relationship is based on an employment contract.").

Furthermore, Recital 42 of the Regulation specifies that "consent should not be considered freely given if the data subject is not in a position to make a genuinely free choice or is unable to refuse or withdraw consent without suffering detriment." Circumstances that cannot be deemed present in the specific case, considering the peculiar characteristics of the relationship between the Company and the riders. In this regard, it is also emphasized that the Authority has established that the processing of personal data of the riders is carried out by the Company within the framework of an employment relationship, now regulated by Article 2, Legislative Decree No. 81/2015 (as amended by Article 1, paragraph 1, letter a), numbers 1 and 2, Decree Law 3.9.2019, No. 101, converted with amendments into Law 2.11.2019, No. 128) and therefore the "regulations of the subordinate employment relationship" apply to them (see funditus para. 4.12).

With reference to the section "geolocation" (point 3), some legal bases are indicated in a generic

manner and seem to refer to the purposes of processing (in particular: “combating terrorism,” “money laundering,” “crimes against public health”), moreover, these are not specified in any way in point 2 of the information, contrary to what the Company claims. Regarding the Company’s statement that “the information included in the Terms and Conditions includes further information regarding geolocation processing, with a clear indication of the applicable legal bases” (see note 11/12/2023, p. 15), it is clarified that, in the aforementioned point 3 of the information in question, there is no reference to the document containing the “Terms and Conditions” through which the data subject could abstractly, according to the Company, understand that further information regarding geolocation would be contained therein (on issues related to the document “Terms and Conditions” see *infra*).

The methods of processing (point 6, “methods of processing”) are then indicated in such vague terms that they do not provide useful indications for the data subjects. In this regard, it is recalled that the necessity to provide information regarding the methods of processing derives from the combined provisions of Articles 5 and 13 of the Regulation, since knowing how one’s data is processed is the utmost expression of the principle of transparency: without indications regarding the methods of processing, the so-called information is lacking a central and essential part to understand how the data controller actually carries out the processing itself. In confirmation of this, the cited Guidelines on Transparency, in illustrating the concept of transparency, refer to Recital 39 of the Regulation according to which “the methods by which personal data concerning them are collected, used, consulted or otherwise processed should be transparent to individuals, as well as the extent to which personal data are or will be processed” (see Guidelines on Transparency cited, point 6).

Part of the content of the information, moreover, is not consistent with what was established during the inspection. In particular, within point 7, “metrics,” it is specified that “no profiles are created,” and that “the data controller does not make decisions based on automated decision-making processes.”

However, this contradicts what emerged during the inspections regarding the performance of automated processing of data related to the riders and the creation of profiles: within the system of excellence and assignment of shifts (slots) to the riders; within the order assignment system; in cases of disconnection and account blocking (see document “Terms and Conditions of Use of the Glovo Platform for Couriers” provided by the Company during the inspection on December 13 and 14, 2022).

The lack of transparency and clarity is also found concerning what is indicated regarding geolocation, still within point 7,

“metrics,” of the information notice in question; geolocation is, in fact, defined as “direct and exclusively associated with the service,” “temporary and not exhaustive, but limited to a short route between two mandatory points that the Courier cannot choose,” despite the processing carried out through the geolocation systems of the rider being specifically about the rider’s data and thus constitutes, in all respects, a personal data related to the rider and not “to the service.” This is also confirmed by what emerged from the inspection activity (see minutes of operations carried out, 14/12/2022, p. 7). The formulation used by the Company does not allow the interested parties to understand what the actual processing of geolocation data consists of. The section relating to geolocation also indicates that “the data controller may, solely in the event that the Courier directly activates the geolocation function on their device and solely during the hours in which the Courier performs delivery tasks, receive information regarding the geographical position of the mobile device used.” This information does not appear to be consistent with what emerged during the inspection regarding the fact that GPS operates even when the app is in the background and, until 22/8/2023, even when the app had not been opened. From the analysis of the aforementioned information notice, it also emerged that the indications provided regarding the processing of biometric data are not clear nor do they correspond to what emerged from the investigative activity: in point 8 (“authentication process”) it is specified that the processing of biometric data has been carried out “since November 2020” despite the Company having declared, during the verification, that the processing of biometric data was interrupted in July 2022. The Company has also stated that “the ongoing Jumio test consists of the following phases: 1. at the beginning of February, a first activation of facial recognition was carried out on 3.28% of active Couriers in Italy. 2. On February 20, it was extended to 18.33% of active Couriers. 3. On February 27,

it was activated on a smaller percentage of 15.55%. 4. On March 13, the test was extended to 32.61%.” The information notice examined was acquired on December 14, 2022, during which, according to what was declared by the Company, it was not processing biometric data. In this regard, the Company acknowledged that “the language contained in the information notice on file has not been promptly updated following the temporary suspension of the biometric authentication mechanism due to the technical flaws encountered in July 2022” (see note 11/12/2023, p. 17). It is also not correct, still within the same point 8 of the information notice, the indication that “This processing of biometric data is necessary to fulfill the obligations regarding labor law, safety, and social protection assumed by the Data Controller pursuant to Article 23, (titled “Contrast to labor exploitation and irregular work”) of the National Collective Labor Agreement for Riders”; in fact, within the cited collective contract, there is no express provision that provides for the obligation of facial recognition. Finally, it is believed that the section of the information notice titled “Annex I - Retention Periods” has not been drafted in a clear and intelligible manner: the processed data are not clearly indicated; not all categories of data that the Company processes have been indicated; furthermore, the indication of the categories of data processed is overlapped with the purposes of the processing. The document containing “Terms and Conditions of Use of the Glovo Platform for Couriers,” taken from the Company's website (<https://glovoapp.com/it/legal/terms-couriers/>), which indicates the last update date as April 29, 2022, delivered by the Company during the inspection on December 13 and 14, 2022, appears to have been rendered in violation of Articles 5, paragraph 1, letter a) of the Regulation (principle of transparency and principle of fairness), 12 and 13 of the Regulation: the formulation of what is contained therein does not appear clear (see paragraph 9.4, “Purposes and legal basis for processing”), moreover, some indications regarding disconnection and account blocking are not correct nor corresponding to what was declared during the inspection. In this regard, the document states that “Glovo reserves the right in any case to remove or disable access to any Account for any reason or without reason, even if it believes, at its sole discretion, that your Account violates the rights of third parties or rights protected by the Terms and Conditions” (see point 5.4.2.). Conversely, during the inspection, the Company stated that it had adopted a procedure that provides for deactivation/blocking only upon the occurrence of specific cases (which therefore would not operate for “any reason or without reason”), with the possibility, moreover, for the rider to obtain the revocation of the measures (Annex 7 minutes 14/12/2022). 4.2.2. The version of the information notice, updated to December 2022, extracted from the Company's website during the inspection on March 1, 2023. During the inspection activity, a version of the information notice updated to December 2022 was extracted from the Company's website (Annex 10 minutes of operations carried out 1/3/2023). However, this document also does not appear to comply with data protection regulations, particularly Articles 5, paragraph 1, letter a) (principle of transparency and principle of fairness), 12 and 13.

of the Regulation. Furthermore, the Company has stated that only “subsequently,” in relation to the update on the website, the new information was attached to the contracts with the riders (see note of withdrawal of reservations dated 16/3/2023). Therefore, the latter continued to have, until the inclusion of the new version, an outdated information notice. In this regard, the Company's assertion that “the paper information attached to the contracts clearly indicates that any updates can be found online at the indicated hyperlink” (see defense memoranda 11/12/2023, p. 18) is of no merit, as this indication, included within the information attached to the contracts signed by the riders, can be considered a useful tool for knowing updates to the information in the event that, after signing the contract, it has undergone a modification; certainly, however, the presence of the aforementioned indication does not justify (nor compensate for) the communication of outdated information, already at the time of the conclusion of the contract to which it is attached and that contained on its website, as the Company seems to suggest.

The data protection regulation is deemed violated as, overall, the document updated in December 2022 appears non-compliant with the standards of transparency and intelligibility required by the Regulation (for some points, the distribution of information is based on the subject concerned, e.g., point 6 is dedicated to the rider - courier -, but some information regarding the processing of riders' data is contained in other points, particularly only in points 13 and 14 are there chapters on automated

decisions and profiling, without any internal reference), as well as the completeness of the information, considering that not all data of the riders that the Company processes are indicated exhaustively: in point 6.2, the data related to order management are not specified; within the same point, there is no mention of the processing of biometric data (it is indeed unclear whether the indication of “photo: road safety, prevention of accounting fraud, and public safety” also includes the processing of biometric data); in point 15 on security measures, no specific data is indicated, not even by referring to a different document.

Furthermore, there is no reference regarding the deactivation/blocking of the rider's account by the Company. The document does not appear clear and transparent, even with respect to the conditions of lawfulness of the processing (in the initial section “1. scope,” reference is made to the consent of the data subject without specifying in relation to which processing such consent would apply; moreover, it refers to previous considerations regarding the inadequacy of consent as a legal basis in the employment context, see paragraph 4.2.1.; within point 6, legal bases and purposes of the processing are also indicated in a confused and contradictory manner).

Even the table contained in Annex I to the information updated in December 2022, “general retention periods,” in the section dedicated to riders (point 6), is not clear as it is generic and not exhaustive; it is also divided into two parts (“general” and “couriers”) without clarity on the reason for the division, given that the table in question is located in the section dedicated to riders.

The content of the information updated in December 2022 does not appear entirely compliant with the actual processing carried out, as observed during the inspection, considering that it states that no automated decisions are made nor profiles created pursuant to Article 22 of the Regulation (see points 13 and 14).

#### 4.2.3. Further versions of the information regarding the processing of riders' data.

During the inspection conducted on July 26 and 27, 2023, the Company also provided additional versions of informational documents related to the processing of riders' data. In particular, some are almost identical to the information already made available to the Office during the investigation, for which reference is made to the observations already indicated in previous paragraphs (Privacy notice updated in December 2022, Terms and conditions of use of the Glovo platform for couriers updated on 29/4/2022), while the information attached to the model of “occasional contract” and the information attached to the model of “VAT contract,” in the versions updated in March 2023 (Annex 3, minutes of 26/7/2023), although in a structure that mirrors that of the previously provided versions, present some modifications.

In relation to these latter versions, the following observations are made. Despite the inclusion of some limited modifications made to the versions of the information attached to the contract models signed with the riders (inclusion of some types of data collected that did not previously appear such as “data related to delivery assignments” and “information on the conversation,” although the wording is not sufficiently clear; use of geolocation for the assignment of orders; indication of the retention periods for geolocation data and biometric data), it emerges that the aforementioned information remains non-compliant with the personal data protection regulation (Articles 5, paragraph 1 letter a), 12, and 13 of the Regulation), in similar terms to what has already been established regarding the previous versions, as the information contained in the aforementioned documents is not provided “in a concise, transparent, intelligible, and easily accessible form” nor are they... provision of “all the information referred to in Articles 13 and 14.” In particular, the categories of data concerning riders that the Company processes are not fully identified, so much so that point 2, dedicated to “data collected,” continues to introduce them with an exemplary statement.

The notices in question also do not appear to be clear and intelligible regarding the identification of the conditions of lawfulness and the purposes of processing (among other things included in the same section), among which there is often a lack of coordination.

With reference to the section “geolocation” (point 3), some legal bases are indicated in a generic manner (in particular: “fight against terrorism,” “money laundering,” “crimes against public health”).



Also regarding the conditions of lawfulness of processing, it is emphasized that within point 4, "explicit consent of the courier" is also indicated, for which the considerations made above apply.

The methods of processing (point 6, "methods of processing") are also indicated in such general terms that they do not provide useful information for the data subjects. Part of the content of the notice, moreover, is not consistent with what was established during the inspection. In particular, within point 7, "metrics," it is specified that "no profiles are created," and that "the data controller does not make decisions based on automated decision-making processes."

The lack of transparency and clarity is also found with reference to what is indicated regarding geolocation (see point 7 "Metrics," where geolocation is referred to "the service" and not to the rider).

Furthermore, regarding the methods of geolocation, the data subject was not made aware of the specific characteristics of the geographical detection that also concerned the case where the rider was not engaged in work activities on behalf of the Company and unbeknownst to them, even when the rider is not operational in the slot and the app is in the background.

From the examination of the different versions of the notice for riders delivered most recently, there is also a discrepancy between them based on the type of contract - not supported by any explicit justification - from which an evident difficulty arises for the data subjects in reading and effectively understanding them regarding how their data is processed (cf. par. 3 relating to "geolocation," within which there is a section only in the "occasional contract" model).

This does not therefore comply with the provisions of Articles 5 par. 1 lett. a), 12, and 13 of the Regulation.

4.2.4. Notices delivered on February 29, 2024. In the further submissions of January 15, 2024, the Company, with reference to the documentation containing the notice, indicated, among the measures that "it proposes to adopt in order to further improve compliance with the regulations for the protection of personal data, specifically regarding the observations raised by this Authority [with the notification of violations]," those of: "reviewing all current versions of the courier notice [...] in order to ensure that they have a substantially uniform content"; "reviewing the Notice [...], also following a layered approach that may refer to detailed notices and/or dedicated help pages."

In this way, the Company itself confirmed the need to review the informational documents it prepared, in order to comply with data protection regulations.

With the further submissions of February 29, 2024, the Company sent a "revised" copy of the "Glovo Privacy Notice," a copy of the "Terms and Conditions of Use of the Glovo Platform for Couriers" updated as of February 2024, a copy of a "contract for work performance pursuant to Article 2222 of the Civil Code," and a copy of the "transparency notice pursuant to Legislative Decree 104/2022."

In this regard, it is noted that the aforementioned informational documentation also does not comply with the personal data protection regulations for the reasons indicated below.

Regarding the "Glovo Privacy Notice" (Annex 2 note of 29/2/2024), it is preliminarily observed that it is not dated nor, at present, available on the Company's website.

Point 6, dedicated to couriers, contains indications that are not compliant with personal data protection regulations, in particular: in the list of types of data processed by the Company, with reference to "biometric characteristics," the document specifies that it operates "without processing biometric data," even though subsequently, within the same section, "biometric data" is indicated with respect to which it is specified "only for the use of the facial recognition functionality via Jumio"; among the data processed by the Company, "traffic data" and "metadata" are also indicated, relating to the device and the use of the app, in the absence of any indication regarding the purposes and legal basis of the related processing; among the processing operations, the communication of rider data to other companies in the group is also indicated, despite the fact that, in the same note, the Company declared that "as of today, the Permission [to access the 'livemap' platform] is also not active for employees of Glovo group companies located in other countries" (see note 29/2/2024, point 3.7, lett.

C); in point 6.5, it accounts for the

**\*\*Implementation of "partially automated treatments"** specifying that these "could have an impact regarding the hiring or assignment of deliveries, as well as could involve identity verification activities of the couriers and/or their assessment of compliance with the terms and conditions of use of the Platform," despite the findings of the Authority indicating that such treatments (excellence scoring, geolocation, facial recognition system and authentication process, account blocking/suspension and deactivation) necessarily involve verification and assessment activities by the Company; regarding the geolocation of riders (point 6.5.2.2.), it remains indicated that this operates exclusively during the hours when the courier "is actually performing delivery assignments," despite the fact that during the control activity, it emerged that the GPS operates even when the app is in the background and, until 22/8/2023, even when the app had not been opened. The section regarding the processing of biometric data (facial recognition) also remains, despite this treatment, as will be indicated further below, not being compliant with personal data protection regulations (point 6.5.3. of the information).

Annex I of the Terms and Conditions continues to contain the designation of the rider as the data processor, in the terms already indicated above, i.e., in violation of Article 28 of the Regulation. The reference to this designation as the data processor is also present in the standard contract model contained in Annex 4. Moreover, this standard contract model, undated, contains the link to the privacy notice present on the Company's website dated December 2022. Overall, it does not appear that an adequate review of the submitted information has been carried out, considering, among other things, that not all documentation delivered to the Authority is actually accessible to the interested parties (as specified above, in fact, the "Glovo Privacy Notice," Annex 2 note of 29/2/2024, is neither dated nor retrievable on the Company's website). Furthermore, the informational documents recently submitted to the Authority contain, in the terms indicated, elements of illegality already present in previous versions.

4.3. The obligation of information in the case of the use of automated decision-making or monitoring systems. Article 1-bis of Legislative Decree No. 152 of 1997, introduced by Article 4, paragraph 1, letter b) of Legislative Decree No. 104 of 2022 implementing Directive (EU) 2019/1152, amended by Law Decree 4/5/2023, No. 48, converted into Law 23/7/2023, No. 85, ("Further informational obligations in the case of the use of automated decision-making or monitoring systems"), has established that "The employer or the public and private client is obliged to inform the worker of the use of fully automated decision-making or monitoring systems intended to provide relevant indications for hiring or assignment of tasks, management or termination of the employment relationship, assignment of duties or tasks as well as indications affecting the surveillance, evaluation, performance, and fulfillment of the contractual obligations of the workers. The provisions of Article 4 of Law No. 300 of May 20, 1970 remain unaffected."

The regulation also specifies what information must be provided to the worker "before the start of the work activity," in particular: a) the aspects of the employment relationship affected by the use of the systems; b) the purposes and objectives of the systems; c) the logic and functioning of the systems; d) the categories of data and the main parameters used to program or train the systems [...], including performance evaluation mechanisms; e) the control measures adopted for automated decisions, any correction processes, and the person responsible for the quality management system; f) the level of accuracy, robustness, and cybersecurity of the systems referred to in paragraph 1 and the metrics used to measure such parameters, as well as the potentially discriminatory impacts of the metrics themselves.

The Authority, with the document "First indications on Legislative Decree of June 27, 2022, No. 104, so-called 'transparency decree'" (web doc No. 9844960), clarified that the new informational obligations introduced by Article 4, Legislative Decree 27/6/2022, No. 104 constitute a more specific and greater protection framework for the interested parties in the workplace, pursuant to what is established by Article 88 of the Regulation.

As a result of the investigations, it emerged that, from the date of entry into force of the aforementioned specific obligations regarding transparency (August 1, 2022) until May 18, 2023 (the date on which the

Company prepared a first informational document in this regard, Transparency Notice pursuant to Legislative Decree 104/2022, see note 11/12/2023, p. 18), the Company did not adopt any notice regarding the processing of data related to riders carried out through fully automated decision-making or monitoring systems, as required by the aforementioned regulation.

This is also in light of the stricter definition, in effect from May 4, 2023, which added the adverb "fully" to the original definition of automated systems. The Company, as argued more extensively in the subsequent paragraph dedicated to automated treatments, carries out a plurality of treatments through fully automated systems, intended to provide relevant indications for the assignment of tasks, management, termination of the employment relationship, assignment of duties, as well as indications affecting the... \*\*

supervision, the evaluation, the performance, and the fulfillment of the contractual obligations of the riders.

Despite this, it failed to provide information regarding the existence and specific functioning of the aforementioned systems, not complying with the request set forth in Article 1-bis mentioned, prior to the commencement of work activities, concerning a significant number of interested parties, amounting to 7,405 riders (as of the date when the data regarding the riders who began their activities after August 1, 2022 was provided to the Authority, see note dissolving reservations of December 27, 2022, letter R).

In this regard, it is emphasized that, with respect to employment relationships established after August 1, 2022, the additional informational obligations must be fulfilled, by express legal provision, before the commencement of work activities (Article 1, paragraph 2, of Legislative Decree No. 152 of May 26, 1997).

Moreover, regarding the automated processing carried out by the Company, to which the provisions of Article 1-bis mentioned must apply, the merits jurisprudence has repeatedly ruled (see Turin Court ruling No. 231 of 2024, published on March 12, 2024 "Foodinho uses systems that can be defined as fully automated to make decisions that affect the management of the employment relationship." [...]) the opposing company adopted a fully automated decision-making system to evaluate the reputation (i.e., the performance) of the couriers, which significantly impacted the employment relationship as it involved assigning a score to gain priority access to the bookable slots calendar on the platform. The system also included profiling of the couriers [...]. The company was therefore subject to the informational obligations provided for by the so-called transparency decree, even as amended by Decree Law No. 48/2023."

According to the Turin Court, furthermore, the information referred to in Article 1-bis mentioned, subsequently prepared by the Company, was deemed non-compliant with the provisions of the same norm.

See also Palermo Court ruling of July 20, 2023, according to which the "automated systems used by the defendant [Foodinho s.r.l.] are fully automated systems, given that in them the alleged (and not proven) human intervention would not intervene in the final phase, but only possibly in the data entry phase or in the activation of the system itself, in which the subsequent processing and treatment of the data and any final decision are entirely entrusted to algorithmic or computer automations"; on that occasion it was also ordered that "the defendant's obligation to provide the information required by Article 1-bis, introduced by Legislative Decree No. 104 of 2022, to the applicant trade unions remains even after the entry into force of Decree Law No. 48 of 2023, excluding, of course, those that affect systems or parts thereof covered by industrial or commercial secrecy."

Regarding the excellence system, the Company stated that it provides "explanations on the functioning of the [score assignment] at different times and through different means" (see note of December 27, 2022, letter Q), including through an explanatory video made available to the riders "during the onboarding process," through information available on the Company's website, newsletters, and meetings, of which no evidence has been provided.

In this regard, first of all, it is recalled that pursuant to Article 12 of the Regulation, information on processing must be provided to the interested parties in a concise, transparent, intelligible, and easily accessible form, using simple and clear language; only where the interested party requests it,

information on processing may be provided orally, but even in this case, the data controller has the obligation to demonstrate that it has acted in accordance with the data protection regulations (see also the accountability principle in Article 5, paragraph 2 of the Regulation).

The same Article 1-bis mentioned, in paragraph 6, provides that “The information and data referred to in paragraphs 1 to 5 of this article must be communicated by the employer or the client to the workers in a transparent manner, in a structured format, commonly used and readable by automatic devices.”

Secondly, it is noted that the processing of data related to the score assignment does not constitute the only automated processing carried out by the Company, as will be further discussed.

Furthermore, the information that was provided by the Company regarding the score assignment system did not meet the requirements set forth in Article 1-bis mentioned.

With the defensive memoranda of December 11, 2023 (Annex 5), the Company subsequently produced a “Transparency Information pursuant to Legislative Decree 104/2022,” regarding which it stated that it is “specific information regarding some of the treatments that involve partially automated processes, including the logic related to the Excellence Score and the criteria for assigning slots” (p. 18).

Regarding this version of the transparency information - which the Company stated it adopted on May 18, 2023, and made available both on its website and by sending it to all riders - it is observed that it is not adequate, compared to what is required by the regulations, as it lacks some of the processing” (in the updated version, the term “soggetto responsabile” has been replaced by “titolare”), “ensure that the employees of his organization for the processing of personal data commit to respecting the confidentiality of the personal information processed on behalf of the data controller”).

However, the designation of the rider as the data processor does not align with the provisions of Article 28 of the Regulation, as the rider does not possess the necessary authority or capacity to fulfill the obligations imposed on a data processor. The responsibilities outlined in the document imply a level of control and oversight that the rider, acting independently, cannot adequately provide.

Furthermore, the document does not specify the third-party companies that operate as sub-processors, which is another requirement under Article 28 of the Regulation. The lack of transparency regarding the involvement of third parties in the processing of personal data raises significant compliance concerns.

#### 4.5. Violation of Article 32 of the Regulation regarding the security of processing.

The Company has failed to implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, as required by Article 32 of the Regulation. During the inspection, it was noted that the Company did not have adequate security protocols in place to protect personal data from unauthorized access, loss, or destruction.

Specifically, the Company did not provide evidence of regular security assessments or audits, nor did it demonstrate that it had established a comprehensive data breach response plan. The absence of such measures indicates a serious breach of the obligations imposed by the Regulation, which could potentially expose personal data to significant risks.

In conclusion, the Company has violated multiple provisions of the Regulation, including Articles 5, 12, 13, 28, and 32, resulting in inadequate protection of personal data and a failure to comply with the legal requirements for data processing. Immediate corrective actions are necessary to address these violations and ensure compliance with the applicable legal framework.

responsible” (in the updated version it has been specified “expressly and in writing”), “provide the interested parties with information regarding the processing of their data carried out within the scope of the processing, at the time of data collection,” see Annex 4, defensive memoranda 11/12/2023).

In this regard, while acknowledging that, following the notification of violations by the Authority, the Company has corrected the erroneous qualification in terms of “data processor” attributed both to the Company itself and to the rider, it is noted that the instructions given to the riders as data processors by the Company have remained unchanged (see defensive memoranda 11/12/2023, p. 17).

Considering this, it is deemed necessary to emphasize how the aforementioned designation, in light of the directives given to the rider contained therein, the activities actually carried out by the riders, and the type of employment relationship that exists between the Company and the couriers, does not correspond to the nature of the tasks actually assigned to the rider.

The designation of the rider as a data processor, as provided by the Company, therefore violates Article 28 of the Regulation since it is evident that the riders lack, in practice, the necessary characteristics to perform the tasks assigned by the data controller (see Article 28, paragraph 1 of the Regulation, which prescribes that the data controller must only engage data processors who provide sufficient guarantees to ensure that the processing carried out on their behalf meets the requirements of the Regulation and guarantees the protection of the rights of the data subjects).

Furthermore, with reference to what is established by Article 28 of the Regulation, during the investigations it emerged that the deactivation operations from the platform were carried out not only by Company operators but also by sub-processors of Glovoapp23 SL, in particular by operators from Comdata and Trizma.

In this regard, it should be highlighted that the Company has represented in documents that “Foodinho S.r.l. makes use of external call center support, Meritus Upravljanje, d.o.o. (MPLUS) and Comdata, S.p.A. (COMDATA), limited to the onboarding activity of the Courier (MPLUS) and real-time assistance to the Courier (COMDATA),” note 27/12/2022, letter I).

From the examination of the documents acquired during the inspection activities (see file result.csv, present in Annex 5, inspection report 28/2/2023), it emerged instead that there are numerous cases in which the deactivation of a rider (thus not only the onboarding and real-time assistance activity) was carried out by operators belonging to those latter companies.

In light of the findings in the documents, it emerges that the deactivation activity is also entrusted to personnel belonging to companies that operate as sub-processors, without, based on the examination of the documentation produced by the Company, having provided this personnel (which is also numerically considerable, see note dissolving reservations 16/3/2023, p. 9, where a total of 256 operators is indicated) with the necessary instructions in advance, as clearly required by Article 28 of the Regulation.

In this regard, it is noted that, during the proceedings, the Company declared that it had discontinued the service provided in Italy by Trizma and had provided “further instructions to the operators of the Comdata call center [regarding] any disconnections of the accounts [of] the couriers” (see note 29/2/2024).

Considering that no evidence has been provided of any prior regulation of the relationship with the sub-processors, regarding the disconnection activity from the platform, the Company has violated Article 28 of the Regulation up to the date of February 29, 2024.

4.5. Violation of Articles 5 (principle of minimization), 22 (obligation to implement appropriate measures to protect data subjects in the case of automated decision-making processes) and 25 (principles of privacy by design and privacy by default).

As a result of the investigative activity, it also emerged that the Company, as the data controller, using the digital platform Glovo (see Franchise Agreement, 1/10/2019, Annex A, note dissolving reservations 16/3/2023), carries out automated decision-making processes, pursuant to Article 22 of the Regulation (defined as a “decision based solely on automated processing, including profiling, which produces legal effects [...] or similarly significantly affects” the data subject).

4.5.1. The excellence system and the order assignment system within the shift.

Automated processing is carried out by the Company, primarily, through the operation of the so-called excellence system and the order assignment system, as they are currently configured.

The excellence score operates by considering four parameters, which have different weights, based on the different cities in which the riders carry out their activities, in the last 28 days of platform use, even

if not consecutive (the so-called reference period). The overall score “has a progressive and increasing weight in the Reference Period (e.g., the most recent performance has a more significant score compared to that of 28 days ago).”

The parameters considered by the system are as follows: “contribution” parameter (indicated as “Sum Seniority Normalised”) which refers to the number of orders delivered in the reference period; “no show” parameter (“Sum No Show”

\*\*Normalized\*\*) regarding the number of times the rider has booked a slot but then did not check in (considering that the rider can check in starting from 25 minutes before the start time of the slot until 10 minutes after; furthermore, the booking can be canceled up to one minute before the start time); the parameter “customer rating” (“Sum Customer Rating Normalised”), related to the feedback received from the customer; finally, the parameter “high demand slot” (“Sum High Demand Normalised”) takes into account the time during which the rider performs the service within high demand slots that occur weekly (these are shifts during which there is normally a higher influx of orders and amount to six hours a week, generally corresponding to three hours for dinner on Saturday and three hours for dinner on Sunday).

The score automatically assigned to each rider, based on the operation of the parameters processed by the platform, allows for priority booking of the delivery shifts (slots) established by the Company and made available, through the platform, twice a week (Monday and Thursday at 4:00 PM). The rider who obtains a higher score accesses, with priority over others, the assignment of the work shift and the related orders, considering that some shifts allow for receiving a higher number of orders (so-called high demand slots).

Contrary to what the Company claims, riders cannot freely book their chosen work shift among the proposed slots. Following the examination of the documentation present in the records, it emerges that there are saturated slots, i.e., delivery shifts booked at 100%, in which the availability from the riders exceeds the demand from the Company, making it impossible for those who obtain a lower score, within the excellence system, to access certain shifts, resulting in a reduction of work opportunities, which are more available in the “high demand” shifts.

In particular, examining the table provided by the Company regarding the filling percentage of individual slots (Annex F, note dissolving reservations 27/12/2022), it emerges that there are numerous saturated slots (at 100.00%) and, in light of the parameters related to individual Italian cities subsequently provided at the request of the Authority, it emerges that, at least concerning two major cities, Rome and Milan, saturated slots are recorded every day (Annex 4, inspection report 28/2/2023).

The Company itself has also represented that the purpose of the “No Shows” parameter is to “prevent the lack of connection without withdrawing availability from harming other couriers who could have booked the slot in question,” based on the assumption that the availability of slots is lower than the demand and the rider who cannot book the shift is thus “harmed” (see defensive memoranda 11/12/2023, Annex 5, “Transparency Information pursuant to Legislative Decree 104/2022”).

Therefore, the automated assignment of the excellence score has a significant impact on the rider's activity, conditioning, as seen, the possibility of booking certain work shifts. Also, through the algorithm that allows for the assignment of orders within the slot, the Company thus makes decisions based solely on automated processing based on the operation of 5 parameters, according to what the Company itself has stated (note dissolving reservations 27/12/2022, letter H: “Courier vehicle; Courier position; distance between the Courier's position and the pickup point; distance between the pickup point and the delivery point; battery of the Courier's device”).

Through the two algorithmic systems, the Company thus carries out treatments consisting of making decisions based solely on automated treatments, including profiling, related to the assignment of work shifts and delivery orders, which significantly affect the individual, through the increase or reduction of work opportunities, precisely due to the decisions made by the system.

The Regulation has governed the matter with the aforementioned Article 22 as well as, with reference

to the notion of profiling, with Article 4, no. 4 and recital 71, where profiling is defined as “a form of automated processing of personal data that evaluates personal aspects of a natural person, in particular for the purpose of analyzing or predicting aspects concerning professional performance, [...] reliability or behavior, location or movements [...] where this produces legal effects [...] or significantly affects that person in a similar way.”

This definition precisely fits the treatments carried out through the parameters that make up the excellence score, aimed at analyzing professional performance [“Sum Seniority Normalised” and “Sum High Demand Normalised”], reliability [“Sum No Show Normalised”], and behavior [“Sum Customer Rating Normalised”], also taking into account location, regarding the assignment of orders in the work shift.

Profiling is therefore used to make entirely automated decisions, through the excellence system, with effects that, as seen, significantly affect the individual by significantly increasing or reducing the work opportunities offered through the platform (in a consistent sense, specifically regarding the decisions made by Foodinho s.r.l. through the excellence score, the Court of Turin, labor section, ruled on 12/3/2024, no. 231).

account deactivation and blocking, the Company has not provided adequate information regarding the procedures and criteria applied in these cases. The lack of transparency in the management of account deactivation and blocking processes raises concerns about the rights of the riders, particularly in relation to the principles of fairness and accountability outlined in the Regulation.

In light of the above, it is evident that the Company has not sufficiently demonstrated compliance with the obligations imposed by Article 22 of the Regulation, particularly concerning the implementation of appropriate measures to protect the rights and freedoms of the data subjects. The findings from the inspection further highlight the need for the Company to reassess its practices and ensure that they align with the legal requirements for data processing, especially in the context of automated decision-making and the management of feedback and ratings.

In conclusion, the Company must take immediate steps to rectify the identified deficiencies and ensure that all data processing activities are conducted in accordance with the applicable legal framework, thereby safeguarding the rights of the riders and maintaining the integrity of the data processing system.

**\*\*Hypothesis of Deactivation (Grievance) and Account Blocking\*\***

In the case of "blocking" the account, the Company performs automated processing. In the event of a "block" on the account, the disconnection, as represented by the Company itself, is carried out automatically by the system, upon the occurrence of predetermined conditions that arise from the processing of data collected and processed by the platform (Cash Balance, Medical checks, Limit 5K, Expired document, INAIL accident, Mandatory trainings): see note 16/3/2023, letter e).

Regarding deactivation/grievance, the Company, at least in relation to some of the indicated hypotheses, has not demonstrated the significance of the margin of autonomy reserved for the human operator, in relation to the operation of the algorithm, thus the automatic component, considering that these are cases that, in practice, do not allow for verification margins.

In particular, the Company has indicated some predetermined hypotheses of deactivation in relation to which no actual and significant margins of possible human intervention emerge, nor have they been indicated by the Company itself: within the "Deactivations carried out in the absence of user reporting," see in particular: no. 3 "Double accounts – Case of a courier with more than 1 account in different cities, with at least 1 account already disabled for fraud"; or no. 4 "Same Nif, same slot," concerning the "case where a courier uses two accounts registered to him, belonging to two different cities/zones simultaneously making it evident that one of the accounts has been transferred"; or no. 6 "Bots to book slots," where the data used by the system consists of the "booking time of the slots (we identify the slots booked in an anomalous time, impossible for a human) e.g. two or more slots on different days booked in less than a second" or "identification of bots used to book slots in progress at the exact moment when another courier has picked up the reservation [...]" (sometimes even below one

second)"; or no. 9 "Other," related to "undetected cases" highlighted based on a "type of collected data not [...] standard" (see Annex E, note of resolution of reserves 16/3/2023).

On the other hand, more generally, the Company, in relation to deactivation from the platform, has limited itself to stating the existence of a "manual verification" of the data collected through the platform itself, by the operators of the Team Operation, without providing any evidence that such verification is significant regarding the decision to carry out the disconnection (see note 16/3/2023, letter f).

In this regard, the Guidelines on the automated decision-making process concerning natural persons and profiling for the purposes of Regulation 2016/679, adopted by the Article 29 Working Party (amended version adopted on February 6, 2018, WP 251 rev.01, p. 23), clarify the scope of human involvement deemed significant in light of a plurality of concrete elements: "the data controller must ensure that any review of the decision is significant and does not constitute a mere symbolic gesture. The review should be carried out by a person who has the authority and competence to change the decision. In the context of the analysis, that person should consider all relevant data. In the context of the data protection impact assessment, the data controller should identify and record the degree of human involvement in the decision-making process and the stage at which it takes place."

Moreover, it is believed that the findings of the expert report regarding the human review activity on decisions related to onboarding and account deactivation of couriers in the systems used by the Company are not conclusive. In fact, regarding onboarding activities, the expert report takes into account the average values related to the number of validated documents in a unit of time, to assert that this value is compatible with an activity performed by an operator, without considering the peaks of activity, present in the detailed data, where the number of documents analyzed, per unit of time, is significantly greater than that considered, by the same experts, compatible with human activity (Annex 5, inspection report of 28/02/2023, folder Docs\_check, file named `_SELECT_date_ccp_docs_check_date_as_Docs_check_date_count_`).

Regarding deactivation activities, it is also noted that the average number of deactivations during the period examined by the expert report (3,768, from March 1 to December 20, 2022; see cited expert report, p. 3) is significantly lower than the average number of deactivations that emerges from the inspection records (6,369, during the period from January 1 to December 31, 2022, with almost a 40% daily increase compared to the expert data; see inspection report 28/2/2023, p. 4), to which must be added, to fully assess the workload of the operators, the 53,861 account blocking operations of couriers.

Therefore, what was observed in this regard by the Company in the defense memoranda does not appear relevant ("Even if the average data of deactivations emerging from the inspection records is higher than that considered in the [expert report], this does not mean that the final output of the observation is not equal to or even greater; which confirms the value of human intervention regarding deactivations"), given that the significant increase...

average number of deactivations charged to the operators, as evidenced by the entirety of the documentation present in the records, indicates that the expert assumption that the not high volume of the operators' workload confirms human intervention in the deactivations from the platform is not verified.

It also emerges that the selection of records to be analyzed, regarding the deactivations, for the preparation of the expert report, was carried out by including, among the parameters used for filtering, a condition related to the format of the email of the operator who would have performed the activity in question (cf. WHERE clause of the SQL query "o.email ilike '%.%operator%'" in Annex 5, file `garante_privacy_manual_deactivations.sql`).

Therefore, the investigation did not take into account cases where the deactivation may have been carried out directly by the system and not by an operator, since only the records in which there was an association with a defined operator were selected for analysis, setting as a search parameter the specific format of the operator's email address.



Regarding the disconnection and deactivation actions of the riders' accounts, the information overall provided by the Company does not allow for a comprehensive definition of the causes and the concrete modalities of their execution. In fact, the causes for which deactivation occurs, identified through access to the systems during the inspection carried out by the Authority, are additional to those resulting from the lists provided by the Company ("List of grievance and blocking reasons," Annex C, note 27/12/2022, p. 5 and "Deactivations carried out in the absence of user reporting," Annex E, note 16/3/2023) as they also included the items Reassignments and Bad rating, despite the Company having stated on this point that the two items "are not concretely used in Italy, neither for blocking nor for deactivation, although they appear as potential reasons for blocking in our IT systems" (note lifting of reservations 16/3/2023, lett. g.).

It is noted, in this last regard, that during the proceedings the Company declared that, starting from February 29, 2024, the items "Bad rating" and "Many Reassignments" no longer appear in the systems "as potential reasons for a block or a deactivation" (see note 29/2/2024). Until that date, however, the aforementioned items were still present in the systems and used by the operators (see further reference to the file result.csv, present in Annex 5, inspection report 28/2/2023), along with others that, although present, "for operational reasons are not used in Italy" (Long delivery time; Courier not moving; High waiting time; B2B fraud; Data protection infringement).

On this point, it is also noted that, from the examination of the aforementioned documents relating to the causes of deactivation/blocking from the platform and their operability (whether dependent on complaints or anomalies identified by the system), it emerges that they compose an imprecise picture as the "List of grievance and blocking reasons" (document defined as "the complete overview of the reasons that may lead to the deactivation or blocking of a Courier's account") contains a series of hypotheses, including cases where one should disregard a complaint (e.g., no. 3, Reassign after PU [case where the courier, after picking up the order, reassigns it to another courier to keep its content]), which are not included in the different list containing the enumeration of "Deactivations carried out in the absence of user reporting."

Furthermore, regarding the causes of disconnection, it has finally emerged that the Company has identified additional cases of disconnection from the system that operate automatically, made known to the Authority during the inspection carried out on July 26-27, 2023. These are particularly hypotheses (no show, out of area position, geolocation deactivation, disconnection during the slot) upon the occurrence of which, according to what was stated, the system proceeds to disconnect from the slot (inspection report 26-27/7/2023, p. 5).

Despite the indication of specific causes of blocking and disconnection from the platform being imprecise, following the verification activity it emerges that, at least concerning some of these treatments, the Company adopts decisions based solely on automated treatments that significantly affect the individuals, preventing, for the period considered, the performance of the work services subject to the contract with the rider.

As emerges from the decision of the Court of Justice of December 7, 2023, in case C-634/21, the notion of "decision," the existence of which is one of the conditions to which the applicability of Article 22 of the Regulation is subject, must be given a broad scope (it "may therefore include [...] various acts that can affect the data subject in various ways"; see cited judgment, point 46).

Furthermore, the Court has deemed Article 22 of the Regulation applicable even in the case where the automated calculation of a probability rate based on personal data of a data subject is transmitted to a third party whose action is guided "decisively" by such rate (see cited judgment, point 48). A less stringent interpretation would entail "a risk of evasion of Article 22." It is therefore necessary, as indicated by the Court, to identify, in the specific case, the treatments that involve specific risks to the rights, freedoms, and legitimate interests of the data subject, also to the

**\*\*4.5.4. Absence of Appropriate Measures for the Protection of Data Subjects.\*\***

In conclusion, it emerges that the Company, despite carrying out a plurality of types of automated processing concerning a significant number of data subjects (the number of riders operating for the

Company active in Italy is 36,545; note 27/12/2022), based on a contract that pertains to a work performance carried out through the digital platform (resulting in the application of Article 22, paragraph 2, letter a) of the Regulation), has not taken appropriate measures to protect their rights, freedoms, and legitimate interests, as provided for in Article 22 of the Regulation (“at least the right to obtain human intervention from the data controller, to express their opinion, and to contest the decision”; see also what is indicated on this point in Recital 71 of the Regulation “in order to ensure fair and transparent processing with respect to the data subject, taking into account the specific circumstances and context in which personal data are processed, it is appropriate for the data controller to use appropriate mathematical or statistical procedures for profiling, implement adequate technical and organizational measures to ensure, in particular, that factors leading to inaccuracies in data are rectified and the risk of errors is minimized, and to ensure the security of personal data in a manner that takes into account the potential risks to the interests and rights of the data subject and that prevents, among other things, discriminatory effects against individuals based on race or ethnic origin, political opinions, religion or personal beliefs, trade union membership, genetic status, health status, or sexual orientation, or that involve measures having such effects”).

The necessity to adopt measures for the protection of data subjects is further confirmed, in the specific case, by the decision of the Court of Palermo, Labor and Social Security Section, ruling 17/11/2023, which declared “the discriminatory nature under Legislative Decree 216/2003 of the criteria of ‘contribution’, ‘high demand hours’ [and] ‘no-show’ used by Foodinho s.r.l. for calculating the so-called excellence score” and condemned the Company “to refrain from the established discriminations by adopting [...] a plan to remove the effects of the same discriminations.”

The Company, therefore, for the reasons stated above, has carried out (and continues to carry out) a plurality of automated processing activities, pursuant to Article 22 of the Regulation (excellence score, order assignment system, account blocking, and certain cases of disconnection from the platform for which - as highlighted above - no significant contribution from operators has emerged), without having adopted, in relation to each of them, the measures to protect the rights of data subjects, in violation of Article 22, paragraph 3 of the Regulation. This has therefore resulted in the violation of Article 22, paragraph 3, of the Regulation (“Automated decision-making relating to individuals, including profiling”).

**\*\*4.6. Violation of Article 5, paragraph 1, letter a), of the Regulation in relation to Article 47-quinquies, Legislative Decree No. 81/2015.\*\***

Based on the data provided by the Company during the inspection activities, used by the expert appointed to draft the “Expert Report on the ‘Grievance Process’” (Annex B, note of release of reservations 27/12/2022 and Annex 5, inspection report 28/2/2023, file result.csv), it emerges that one of the causes of disconnection from the platform, as reported by the same operators who executed the disconnection, is the reassignment of the order (indicated with: "reason":"REASSIGNMENTS"; according to what is reported on the Company's website, reassignment consists of the refusal of an order or its cancellation once accepted: at [https://delivery.glovoapp.com/it/faq/hc\\_excellence/reassignments/](https://delivery.glovoapp.com/it/faq/hc_excellence/reassignments/)).

Therefore, contrary to what the Company has stated, the data processed by the system shows that the rider's request to reassign the booked order entails, under conditions that have not been disclosed by the Company, exclusion from the platform. Furthermore, it emerges that the reassignment of the order may also lead, at the very least, to a reduction in work opportunities. Indeed, in the slides used for staff training (Annex F, note of release of reservations 16/3/2023), it is stated that “Guaranteed: From the National Collective Labor Agreement, we are entitled to remove the Guaranteed from all slots adjacent to the slot in which the courier reassesses a single order. To date, we only remove the guaranteed in the slots where the courier reassesses 100% of the orders assigned to them. This can be customized from city to city.”

Therefore, under conditions that may vary from city to city, the reassignment of orders nullifies the reservation of the slot (the status of “Guaranteed” is removed), resulting in the loss of work

opportunities arising from the orders that arrive during the relevant shift. The Company itself, moreover, on the page dedicated to explaining the excellence score available on its website, under the heading “Reassignment,” clarifies to riders that “Reassigning orders often could have a negative impact on your earnings: when you reassign an order, the algorithm may take some time to find a new order for you, thus causing you...

wasting time and slowing down the growth of your excellence score!” (in Glovo Italy Reassignments - Italy (glovoapp.com)).

In this regard, what the Company has deduced in its defense briefs (“the possibility, on the part of Foodinho, to remove the so-called Guaranteed in the slots corresponding to reassignments [...] represents a form of protection for users of the Platform and the proper functioning of the service, without actually representing a reduction in job opportunities”) confirms that, in the presence of reassignments, the system eliminates the so-called Guaranteed, and the consequence is precisely the reduction of job opportunities conveyed by orders in the shift booked by the rider who has made a reassignment.

More generally, the same parameters that make up the excellence system, aimed at assigning a higher score to the rider who makes a greater number of deliveries (“Sum Seniority Normalised”), who books a greater number of high-demand slots (“Sum High Demand Normalised”), who checks in during the booked slot within the required terms (“Sum No Show Normalised”), and who does not receive negative feedback from customers (“Sum Customer Rating Normalised”), are preordained to reduce job opportunities for riders who do not accept the offered service.

This therefore results in a violation of what is established by Article 47-quinquies, Legislative Decree No. 81/2015, which has established specific protections, in the context of work through digital platforms, particularly the prohibition of “excluding from the platform and [the] reduction of job opportunities attributable to the failure to accept the service” which results in the loss of the lawfulness condition of the processing required by Article 5, paragraph 1, letter a) of the Regulation.

4.7. Processing of biometric data, in the absence of the conditions of lawfulness provided for by the legal system (Article 5, paragraph 1, letter a), 9, paragraph 2, letter b, of the Regulation; Article 2-septies of the Code).

With reference to the processing of biometric data (in particular through facial recognition) of the riders, the Company specified that it began processing on November 23, 2020, “as part of the initial tests related to the authentication procedure” and that it “ceased to use this authentication procedure and, consequently, to collect and process biometric data of the Couriers starting from July 2022” (see note 27/12/2022, letter s).

The Company subsequently clarified that the processing, interrupted due to “internal bugs” which could lead to “potential unjustified blocks of the Couriers' profiles,” has resumed in some cities, such as Milan, “in order to identify any malfunctions” (see note 16/3/2023, letter q); in particular, at the beginning of February 2023, the test was activated on 3.28% of active Couriers in Italy, on February 20 it was extended to 18.33% of active Couriers, on February 27 it was activated on a smaller percentage of 15.55%, and on March 13 the test was extended to 32.61%.

The Company also stated that, starting from March 27, 2023, it planned to reactivate facial recognition for all active Couriers.

With a note of lifting reservations dated September 15, 2023, the Company finally represented that the system “is back in use throughout the country.”

The operation of the biometric recognition system is also confirmed by the use of the authorization “high\_sampling\_sensor\_rate,” whose purpose is “to ensure that the person trying to be recognized is a real person and not just a photo of the account owner” (see note lifting reservations 15/09/2023, p. 3).

The fact that the Company suspended the processing of biometric data for a period of over seven months highlights that such processing is not essential for the provision of the food delivery service.

In particular, regarding the specific modalities of the processing, it has emerged that the processing, carried out as a “test” by the Company, consists of “requesting facial recognition once a day from all involved Couriers and checking for errors in the process” (see note 16/3/2023, letter q).

It has also been established that the Company, in carrying out the processing of biometric data, uses software provided by the American company Jumio Corporation, which has taken on the role of data processor.

Based on what has been represented, the processing is structured in two phases: the first, aimed at scanning the photograph contained in an identity document of the rider, and the second, in which the rider is asked to take a “selfie” in order to verify it against the scanned photo of their document.

In this regard, the Company emphasized that failing to perform the recognition may lead to the deactivation of the account for security reasons and that “if the Courier does not perform the recognition or in case of failure to recognize before the deactivation of the account, the calendar through which the Courier books the slots will be blocked and the Courier will be asked to proceed with the recognition to reactivate the calendar. Note that the account will still be active, but the Courier will not be able to book new slots beyond those already booked previously” (see note 16/3/2023, letter p).

According to what has been represented by the Company, the processing, consisting of biometric recognition, is aimed at combating events of “labor exploitation in the food delivery sector” although it does not constitute a “measure in itself [...] sufficient to avoid the phenomenon” but rather “an effective deterrent” against the commission of criminal conduct. sanctioned (see defensive memoranda, note 11/12/2023).

As for the legal basis, the processing of biometric data of riders would be attributable to Article 9, paragraph 2, letter b) of the Regulation in relation to the obligation to “prepare an organizational model with exonerating effectiveness pursuant to Legislative Decree 231/01” (see cited defensive memoranda). The Company also emphasized that it conducted a data protection impact assessment, pursuant to Article 35 of the Regulation (an updated version of this document was submitted to the Authority with a note dated 29/2/2024, which also specified that biometric data is retained for the entire duration of the employment relationship).

In this regard, it is noted that, based on the regulations concerning the protection of personal data, the processing of biometric data (generally prohibited under Article 9, paragraph 1 of the Regulation) is only permitted if one of the conditions set out in Article 9, paragraph 2 of the Regulation applies and, with regard to processing carried out in the employment context, only when the processing is “necessary for fulfilling the obligations and exercising the specific rights of the data controller or the data subject in the field of labor law and social security and social protection, to the extent that it is authorized by Union law or the laws of the Member States or by a collective agreement pursuant to the laws of the Member States, in the presence of appropriate safeguards for the fundamental rights and interests of the data subject” (Article 9, paragraph 2, letter b) of the Regulation; see also: Article 88, paragraph 1 and recitals 51-53 of the Regulation).

The current regulatory framework also provides that the processing of biometric data, in order to be lawfully carried out, must comply with “additional conditions, including limitations” (cf. Article 9, paragraph 4, of the Regulation).

This last provision has been implemented in national law through Article 2-septies (Guarantee measures for the processing of genetic, biometric, and health-related data) of the Code. The provision states that the processing of such categories of data is lawful if one of the conditions set out in Article 9, paragraph 2, of the Regulation is met “and in accordance with the guarantee measures established by the Authority,” in relation to each category of data.

This was reiterated by the Authority concerning the processing of biometric data (based on facial recognition) for attendance detection purposes with the measures of 22/2/2024, nos. 105, 106, 107, 108, and 109, web doc nos. 9995680, 9995701, 9995741, 9995762, 9995785 (see also, regarding the processing of data derived from fingerprints, the measures of 10/11/2022, no. 369, web doc no. 9832838 and 14/1/2021 no. 16, web doc no. 9542071).

Regarding the specific case, it is highlighted that, currently, the existing legal framework does not allow

for the processing of biometric data of workers for the purpose of identifying them (carried out after the initial recognition and subsequently randomly) in order to prevent impersonation in the performance of duties, given that such processing does not find its foundation in a regulatory provision that has the characteristics required by data protection law, also in terms of the proportionality of the regulatory intervention concerning the objectives to be pursued.

Finally, it is noted that, in any case, the adoption of the biometric system by the Company is not sufficient to prevent impersonation phenomena, as acknowledged by the Company itself (the measure "by itself is not sufficient to avoid the phenomenon" of account sharing) given that, even where the reliability and accuracy of the chosen biometric system were sufficiently high (a circumstance that cannot be said to have been achieved considering that the Company itself deemed it necessary, albeit for a limited period, to suspend the processing of biometric data due to internal system bugs, after which it was necessary to initiate a "testing" phase), it would always be possible to hand over the device to another person after recognition (regarding facial recognition, see also: Measure no. 50 of 10/2/2022, web doc no. 9751362).

Therefore, taking into account the aforementioned regulations, the Company's decision (communicated to the Authority with a note dated June 5, 2024) to reduce the retention periods for collected biometric data - although the new periods are still considerable - ("three (3) months from the last order in the case of inactive couriers" and "three (3) months from the deactivation of the account in the case of couriers whose accounts have been deactivated for reasons not related to facial recognition," while for active couriers the data is retained for the entire duration of the employment relationship) does not change the assessment of the unlawfulness of the processing of biometric data. In light of this, it appears that the Company has processed biometric data from November 23, 2020, until July 2022 (after the suspension, processing resumed at the beginning of February 2023) and is still processing biometric data in the absence of an adequate legal basis, in violation of Articles 5, paragraph 1, letter a), and 9, paragraph 2, letter b) of the Regulation.

4.8. Violation of the obligation to conduct an impact assessment of the processing (Article 35 of the Regulation).

According to Article 35 of the Regulation, "When a type of processing, particularly when it involves the use of new technologies, taking into account the nature, scope, context, and purposes of the processing, may present a high risk to the rights and freedoms of natural persons, the data controller...

**\*\*Impact Assessment\*\***

The processing entity, before proceeding with the processing, conducts an assessment of the impact of the planned processing on the protection of personal data.

The Company, at the time of conducting the inspection activities, had carried out a data protection impact assessment, as required by Article 35 of the Regulation, exclusively concerning the processing of biometric data (in particular: facial recognition).

The impact assessment related to the processing of biometric data concerning riders is dated October 2020 (see note 16/3/2023, Annex B) and was updated during the proceedings on February 29, 2024 (see note 29/2/2024, Annex 8).

Therefore, although the Company deemed it necessary to suspend processing in July 2022 due to internal bugs that caused "potential unjustified blocking of the Couriers' profiles," it did not proceed to carry out a timely update of the same, at least regarding the residual risks for the data subjects, as also abstractly provided three months after the publication of the first document (Annex B, note 16/3/2023 cited, p. 73).

Furthermore, and more radically, the impact assessment - even in the version updated at the end of February 2024 - does not adequately consider the aspect related to the lawfulness of the processing of biometric data in the context of managing the employment relationship.

In the section of the document dedicated to the assessment of the legal basis, it is indeed considered applicable to the case at hand the condition represented by the necessity to fulfill contractual obligations, despite the fact that pursuant to Article 9, paragraph 2 of the Regulation, in the case of

processing special categories of data, the necessity to perform a contract does not constitute a suitable legal basis for processing.

It is also considered applicable Article 9, paragraph 2, letter b) of the Regulation, believing, however, that this provision can be supplemented by the "collective agreement recently signed by Glovo" and by the "memorandum of understanding [...] with the Prefecture" regarding the prevention of illicit interposition and exploitation of labor (Annex B, note 16/3/2023 cited, p. 42 and Annex 8, note 29/2/2024, p. 40).

It is noted that the necessity to fulfill obligations and exercise rights in labor law "to the extent authorized by Union law or the laws of the Member States or by a collective agreement pursuant to the laws of the Member States" (Article 9, paragraph 2, letter b) of the Regulation) cannot be satisfied by a collective agreement, except to the extent provided for by national law, nor, even less, by a memorandum of understanding. The provision regarding the processing of special categories of personal data, mentioned above, requires that the primary provision specifically provides for the processing of biometric data, in any case in the presence of appropriate safeguards for the fundamental rights and interests of the data subject.

This also applies in relation to the "fulfillment of a legal obligation," as proposed by the Company, concerning Law No. 199 of October 29, 2016 ("Provisions concerning the fight against black labor, the exploitation of labor in agriculture, and wage realignment in the agricultural sector"), in relation to the liability provided for by Legislative Decree No. 231 of June 8, 2001 ("Regulation of the administrative liability of legal entities, companies, and associations even without legal personality") (Annex 8, note 29/2/2024, p. 37). The express reference to the processing of biometric data is not provided for either by the aforementioned collective agreement, nor by the memorandum of understanding, nor by the regulations referred to by the Company.

Considering that the processing of biometric data of riders has been found unlawful, for the reasons indicated in the previous paragraph, the aforementioned impact assessment, following which the Company believed it could carry out the processing of biometric data, must therefore be considered non-compliant with Article 35 of the Regulation, as the absence of conditions of lawfulness for the processing in question was not correctly and preliminarily assessed.

Furthermore, as established during the proceedings, the Company, in addition to biometric data, processes a multitude of data from a significant number of data subjects (riders) for the purpose of managing the employment relationship, through a digital platform that operates based on complex algorithms, including through automated decision-making processes governed by Article 22 of the Regulation.

In this regard, the argument put forth by the Company in its defensive memoranda cannot be accepted, namely that the preparation of an impact assessment would not have been "mandatory [...] as demonstrated, both by the excellence score and by the grievance process, that there is no automated processing of courier data and profiling of the same."

Based on the outcomes of the proceedings, it has been established that the Company makes decisions based solely on automated processing, including profiling, as argued in the paragraph related to processing attributable to Article 22 of the Regulation (which is referenced here).

In light of what is established by Article 35 of the Regulation, as well as the indications provided in this regard by the Guidelines adopted by the Article 29 Working Party (most recently on October 4, 2017, WP 248rev.01) and by the decision of the Guarantor on October 11, 2018, No. 467 ("List of types of processing subject to the requirement of a data protection impact assessment pursuant to Article 35, comma 4, of Regulation (EU) No. 2016/679", in G.U., S. G. No. 269 of 19/11/2018), the processing activity carried out by Foodinho s.r.l., characterized by the innovative use of a digital platform, the collection and storage of a multitude of personal data related to order management, including geographical location, and communications that occurred via chat and email as well as the possibility of accessing the content of phone calls between riders and customer care, the profiling activities and

automated processing concerning a significant number of “vulnerable” data subjects (as they are part of an employment relationship; see Guidelines WP 248rev.01 of 4.4.2017, Chapter III, B, No. 7), presents “a high risk to the rights and freedoms of natural persons”, resulting in the necessity to carry out an impact assessment prior to the commencement of processing, pursuant to Article 35 of the Regulation.

Furthermore, the obligation to carry out an impact assessment has been reiterated by the legislator, regarding processing arising from the use of automated decision-making or monitoring systems, by Article 1-bis, paragraph 4, Legislative Decree No. 152/1997, added by Article 4, paragraph 1, letter b), Legislative Decree No. 104/2022.

As for the number of data subjects involved in the processing, it is noted that the “Active Couriers” (at the time of lifting the reservations on 27/12/2023) using the APP in Italy since January 2022 has been indicated by the Company as 36,545 (with the clarification that “for ‘Active Couriers’ we mean any Courier, registered in the APP, who has made at least one order using the Glovo Platform since January 2022”). Among the riders who provide their work for the Company, there are 7,405, according to the Company’s own declaration, the “active couriers” who “started using the APP in Italy from 1st August 2022” (see note lifting reservations 27/12/2022, letter R).

It is acknowledged, in any case, that during the proceedings, the Company produced a copy of an impact assessment, dated 29/2/2024, concerning the processing carried out through the excellence system and the geolocation of riders, “with particular reference to the order assignment process, delivery, and calculation of the Couriers’ compensation” (see note 29/2/2024, Annex 9). The document emphasizes the commitment to keep the assessment updated “especially in the case of the introduction of new data processing activities in the Platform that could be particularly invasive for the Couriers in Italian territory.”

Despite this impact assessment containing a detailed description of some processing carried out by the Company (although processing that involves risks for the data subjects such as disconnection/blocking from the platform and the order assignment system have not been considered), of some measures adopted to protect the data subjects, and of other measures that are announced for adoption (in particular, reformulation of some information notices, minimization of the data processed in the excellence system, modification of some retention periods), it is noted that the document does not consider, either in the section relating to the identification of risks or in the one dedicated to the measures planned to mitigate risks, the specific risks arising from the automated processing carried out through the digital platform, nor does it provide appropriate measures aimed at safeguarding the rights, freedoms, and legitimate interests of the data subject indicated by Article 22 of the Regulation, suitable to ensure that factors leading to inaccuracies in the data are rectified, that the risk of errors and discriminatory effects is minimized.

For the aforementioned reasons, the Company has violated Article 35 of the Regulation in the terms outlined above.

4.9. Violation of the obligation to adopt technical and organizational measures adequate to ensure a level of security appropriate to the risk (Article 32 of the Regulation).

Following direct access to the systems carried out during the inspection (using the credentials of Head of Operations, see screenshot Annex 2, minutes of operations carried out 28/2/2023), it emerged that the Company’s operators can access certain data of the riders working for Glovo group companies both in countries other than Italy in Europe and outside Europe.

In particular, by accessing the “Live Map” section, the operators of the Italian company can view, on the city map (EU and non-EU) taken as a reference, certain personal data of the riders on duty, specifically ID, phone number, and geographical location.

Considering that the platform used by the Company operates uniformly, regardless of the country in which it is used, the operators of other Glovo group companies can also, or have been able to, access certain data of the riders operating in Italy. This is confirmed by what the Company itself stated in its

note of 15 January 2024, where it declared that it had activated with GlovoApp23 “in order to establish country-based segregation levels to prevent the viewing of personal data of couriers in other countries, except in a few limited cases” (see cited note point 3.7).

Contrary to what was asserted in the defense memos, the data processing carried out by operators working outside Italy on riders operating in Italy does not “fall outside the competencies of the Guarantor, as [it pertains] to the access levels and the technical specifications of the Platform [...], as well as to processing related to other Glovo group companies as independent data controllers” (see note 11/12/2023, p. 25).

\*\*Considering that it is among the duties of the Company, as the data controller, to ensure that treatments carried out by third parties, lacking a legal basis and for purposes not related to the management of the system, are not permitted. With a subsequent note dated 29/2/2024, in any case, the Company declared that the changes related to the introduction of country-based segregation levels have been applied to the platform, given that “as of today, the Access Permit [to the 'livemap' platform] is also not active for employees of the Glovo group companies located in other countries” (see note 29/2/2024, point 3.7, letter C). Therefore, at least until 29/2/2024, thus for a significant period of time, the Company did not take action with GlovoApp23 S.L. to ensure that access to the personal data of riders operating in Italy was limited and relevant to the purposes of processing and that the confidentiality of such data was guaranteed, through segregation measures aimed at preventing operators from other affiliated companies operating in other countries from accessing, via the Live Map platform, the personal data of riders operating in Italy (in particular ID, phone number, and geographical location). The number of operators employed by Foodinho who access the “Live Map” section is 65 (see note lifting reservations 17/3/2023); the number of agents from Comdata is 82; the number of Team Leads users accessing it is 7 (see note lifting reservations 16/3/2023, letter j); the number of agents from Mplus is 149 and those from Team Leads is 18 (see note lifting reservations 16/3/2023, letter j). Based on what was stated by the Company, therefore, the total number of operators who can access the “Live Map” section for the Company is 321. This is a high number of operators with access privileges to the “Live Map” section (which contains a plurality of data related to the riders) considering that it does not appear that the Company has conducted a specific assessment of the specific needs that would justify access for such a number of operators. The Company, however, did not provide feedback, despite the specific request in this regard, regarding the number of operators overall active on the Glovo platform who accessed (in light of the changes made on 29/2/2024) the “Live Map” section, with the possibility of cross-country access. It is noted, however, that with the note dated 29/2/2024, the Company represented that it has introduced some changes consisting of the introduction of country-based segregation levels, also for the activities of operators operating in Italy (see note 29/2/2024 cited, point 3.7). In conclusion, from the documents, it emerged that until the changes introduced during the proceedings (effective from 29/2/2024), the Company did not implement adequate technical and organizational measures to ensure a level of security appropriate to the risk, aimed at preventing, in particular, that data relating to riders operating in Italy could be viewed by operators from other companies in the Glovo group, without this being relevant in any way for the operation of the service. Therefore, considering the high number of operators who, on behalf of the Company and also from countries other than Italy - given the use of the same platform by all companies in the Glovo group - can access the personal data of riders stored in the systems of the Company itself, it is believed that the system has not been configured in such a way as to ensure the confidentiality of personal data and adequate protection against accidental access, in violation of Article 5 paragraph 1 letter f) and Article 32 of the Regulation.\*\*

\*\*4.10. Violation of the obligation to determine retention times for a period not exceeding the achievement of the purposes for which they are processed (Article 5, paragraph 1, letter e), of the Regulation). It has also emerged that the Company retains recordings of telephone calls made with the riders for 36 months, in relation to the following purposes: to evaluate the quality of the service provided by COMDATA and MPLUS; “to have documentary support for all interactions made with a third party in case of complaint or lawsuit”; “to manage and respond appropriately to requests made by the competent authorities [...] and law enforcement [...]”; “to properly manage and document



compliance with requests from data subjects [...] under GDPR" (note lifting reservations 16/3/2023, letter m.). This extended retention period, moreover related to a type of personal data assisted by particular guarantees from the legal system, as it relates to communications (see Articles 2 and 15 of the Constitution), does not appear to be appropriate in relation to the pursuit of the indicated purposes (particularly considering the timeframes within which it is possible to file a complaint regarding a given order, or to evaluate the quality of the call center service provided by the sub-processors, certainly far less than three years; it has also not been clarified by the Company what the legal obligations are that would impose such retention). In this regard, it has also emerged that the delivery maps executed by the riders have been retained since October 2018 (thus, at the time of the assessment, more than 4 years). While before that date, the data related to the start and end of the route is retained, without details of the route (minutes 14/12/2022, p. 7). In this respect, the Company has not indicated the specific reasons for which, in relation to specific purposes, it was necessary to provide.\*\*

such extensive data retention. In this regard, the Company, in its defense submissions, argued that the retention periods for calls and maps could be set at the broader timeframe of 10 years, considering that they "actually pertain to the management of the contractual relationship between the Company and the couriers, the fulfillment of legal obligations (e.g., in the case of requests from authorities), and security purposes" (see note 11/12/2023, p. 26). Therefore, the currently set periods, which are less than 10 years, would comply with the principles of data minimization and privacy by design.

This argument cannot be accepted, as the retention period for individual data collected must be commensurate with the specific purposes of processing. It is not clear, nor has it been illustrated by the Company, how, in practice, the retention of calls or even route maps could be necessary for the data controller, based on regulations concerning tax, social security, or limitation periods.

Also, regarding the management of customer complaints or disputes over payments received by riders or the reconstruction of incidents that occurred or requests for access from public authorities, it is noted that the ten-year period and the respective periods of 36 months (three years) and 4 years do not appear to be appropriate in relation to such purposes.

It is also noted that, based on what was indicated in the updated information provided in December 2022 (see inspection report 1/3/2023, Annex 10), in general terms, data related to riders is retained, after the termination of the employment relationship, for a "maximum period of ten (10) years to comply with legal obligations [...] and to defend against or initiate any action related to civil, criminal, tax, and social security matters" (cited information, point 6.4).

The attached table regarding "General Retention Periods" does not distinguish the retention times concerning the different types of data and processing carried out (thus also including data related to geolocation and all data related to order management, excluding the aforementioned maps), and indicates nonetheless the sole term of 10 years, in relation to macro-categories of documents (accounting and tax documentation; commercial agreements or contracts; personal civil actions).

Similarly, in the information attached to the note of 29/2/2024 (Annex 2), which, however, is not currently available on the Company's website, it is specified that the retention period, with reference to "contracts and information related to the accounts of the Couriers (e.g., courier ID, other information processed within the contractual relationship)", "data related to orders", "slots booked/in which the courier has checked in", "excellence score" is equal to "10 years from the termination of the contractual relationship." With particular regard to "chat conversations," the term of "36 months from the day the conversation took place in the APP" is indicated, while regarding "geolocation data," the term of "1 year from the end of geolocation" is indicated.

Following the accesses made to the systems during the inspection checks, it also emerged that "the platform retains the personal data and documents of riders with deactivated accounts as of 2016" (inspection report 14/12/2023, p. 7).

Finally, it is noted that the argument put forth by the Company in its defense submissions is not relevant ("the retention period related to processing carried out for the purposes of managing the relationship is dictated by specific legal norms (consider, for example, those concerning tax, social

security, etc.) or, in any case, by general norms of the legal system that provide an indication of the reasonable period of time within which the data can still be considered 'useful' for the data controller," see defense submissions 11/12/2023, p. 26).

The reference to legal norms is indeed indicated in general terms, without specifying, in relation to each processing, why a specific regulation would require a ten-year retention. From this perspective, retention must not merely be "useful" for the data controller but must be specifically aimed at achieving the legally pursued purposes of the processing.

Therefore, even following some partial modifications introduced during the proceedings, it emerges that the Company has identified a single retention period of 10 years concerning a plurality of different data collected during the assignment and management of orders, including the values assigned within the excellence scoring system, without relating this period to the specific purposes pursued with each processing.

Moreover, it has emerged that, in addition to telephone communications, chat communications with riders are also retained for an extended period of 36 months, without any indication regarding the purposes that would make such a period appropriate. The identification of the period of 1 year for the retention of data related to the geographical position collected through the application, although reduced (but still significant in absolute terms) compared to what was previously provided, has not been related to the necessity of pursuing explicit and determined legitimate purposes.

For the reasons stated above, the Company has violated the principle of data retention limitation, according to which the data controller is obliged to retain data in a form that allows the identification of data subjects for a period of...

to the purposes for which they are processed (art. 5, par. 1, lett. e) of the Regulation).

#### 4.11. Sending rider data to third parties.

Violation of articles 5, par. 1, lett. c), 6, 13, 14, and 25 of the Regulation.

As a result of the inspection findings on July 26 and 27, 2023, it emerged that the Company sends a plurality of personal data related to the riders to third parties - specifically Google Firebase, Braze, and mParticle.

The Company stated that these service providers "act as data processors on behalf of Foodinho S.r.l. [...]. Therefore, the data of the couriers are disclosed and/or made available to these companies based on their respective art. 28 GDPR [and the] data processing agreements entered into by the parent company Glovoapp23, S.A. [...] also on behalf of and for the benefit" of the Company (note lifting of reservations 15/9/2023).

It is therefore the Company that has identified, as the data controller, "the purpose [...] and the legal basis [...] for the processing activities in place (within which the providers can offer their services)" (note lifting of reservations cited).

Regarding Google Firebase, which provides the Crashlytics function "to detect and manage abnormal crashes of mobile and web applications used by the couriers," the Company sends the following information: rider ID and "log information" ("metadata related to what the user was doing when the event is recorded: The current screen they were on when the event occurs, The feature triggers enabled for that specific user, The action taken by the user to trigger the event, whether it be a click or a notification received"). The legal basis is constituted by the execution of the contract with the riders, also in relation to the possibility of resolving any malfunctions of the application.

Further information related to the rider is then acquired through the Google Firebase SDK (Software Development Kit): information about the operating system, information about the device, and "geographical information" (IP address, "where the device is connected," that is, the city and country from which the device connects).

The Company also specified that it had used the Firebase Analytics product, which is no longer in use. However, "during the investigation carried out to draft this report, our technical teams discovered that, for technical reasons, a residual part of the code was never removed and some information (such as, for example, the courier ID, city code, or transport) may have still been sent to Google, although such data had no current use by us. To date, we confirm that the SDK and the respective data have been

definitively cleared from the App, as well as from our systems" (Annex 7, note 15/9/2023, cited).

The Company also sends to Braze, "in order to send transactional communications to the riders, as well as commercial" (note 15/9/2023, cited), the following data related to the riders: rider ID, email, and phone number (if present in the database).

Further information collected through the SDK includes: device information (language, model), operating system information, localization (country, Geolp position), start and end of the App usage session.

The Company, regarding the sending to Braze, via the SDK, of the data related to the "precise location of the user," also clarified that "During the execution of the technical investigation in drafting this report, we realized that the courier's app had this configuration permanently enabled. [...] we confirm that it has been definitively resolved and starting from August 22, 2023 [...] we have enabled this configuration" (Annex 5, note 15/9/2023, cited).

Finally, the Company sends to mParticle, "which provides customer data platform (CDP) services that aggregate information (events) across various digital channels in order to send the right communication to the right recipient," the following data related to the rider: rider ID, last known location, as well as "behavioral data (data related to how the courier uses the app), the courier's interactions with the [...] app." The Company also "may [...] share information with mParticle for analysis purposes [based on the] legitimate interest of Glovo to understand how couriers interact with the App, to develop new services and to analyze the information derived from the services" (see note 15/9/2024).

Further information collected through the SDK includes: device information, operating system information, localization (country, Geolp position), app usage ("whenever the user accesses the app or the app is put in the background or terminated").

Finally, regarding the "location tracking" ("This setting allows the SDK to collect the user's location, does not reveal when it acquires this data, so as long as the app has the location permission granted by the user, it can acquire this data at will"), the Company has "planned to disable location tracking and rely only on the last known location forwarding when using the screens" (Annex 6, note 15/9/2023, cited).

The Company has therefore processed, through the use of services provided by designated sub-processors, for a long period of time, a significant amount of personal data related to the riders, which is unnecessary in relation to the purposes for which they are processed.

data protection precludes the use of consent as a legal basis for processing in an employment context, the Company's reliance on the rider's consent or soft spam as a legal basis for sending commercial communications is questionable.

In conclusion, the Company has failed to implement adequate measures to ensure compliance with data protection principles, particularly regarding the minimization of data collection and the provision of clear and comprehensive information to riders about the processing of their data. The ongoing violations of the principles of data minimization and privacy by design and by default, as well as the lack of appropriate information provided to riders, raise significant concerns regarding the Company's adherence to the applicable data protection regulations.

**\*\*Unwanted communications are not applicable to the employment relationship; the processing, consisting of sending commercial communications, therefore occurred in the absence of a suitable legal basis. The arguments put forth by the Company in its defensive memoranda regarding the alleged non-existence of "any subordinate employment relationship" with the riders, from which the admissibility of using consent as a legal basis "for soft-spam or marketing purposes" would derive, cannot be accepted, given that consent cannot generally constitute a suitable condition for the lawfulness of processing in all those employment relationships characterized by an imbalance of power between the parties (that is, between the person providing the work and the entity for which it is performed; in this regard, in particular, the already mentioned Opinion No. 2/2017 of the Article 29 Working Party, par. 2 "With the term 'employee', in this opinion, the Working Party does not refer exclusively to persons subject to a work contract recognized as such under the laws in force. In recent decades, new business models served by different types of employment relationships have become**

more common, particularly the use of freelance workers. This opinion aims to address all situations of employment relationships, regardless of whether such a relationship is based on a work contract"). This has therefore resulted in a violation of Article 6 of the Regulation.\*\*

**\*\*4.12. Control over the activity of riders. Violation of Articles 5, par. 1, lett. a) and 88 of the Regulation and Article 114 of the Code.\*\***

Following the inspection findings, it emerged that the Company employs the services of riders who perform home delivery of food and other goods based on a standard contract prepared by the Company itself. The contract template, regarding duration, provides that upon expiration "the contract shall be automatically renewed year by year for a period of 12 months" (see Annex 2, minutes of 16/12/2022). Riders are assigned an account to access the digital platform through which the delivery activity is organized and managed. It has been established that, for the performance of the riders' activities, the Company, through the platform, systematically collects and stores the geographical location of the courier according to the timings of Google Maps (very close together), even when the rider is not active in the slot. Furthermore, the Company collects the geolocation data, even when the app is in the background and, until August 2023, even when the app was not active, during the sending to third parties acting as data processors on behalf of the Company itself (see par. 4.11. of this provision). In the systems of the data processors, the data related to the geographical location of the rider is therefore available to the data controller who has the concrete possibility of using it. This allows the Company to process the data related to geolocation, even when the rider is not performing their work activity. Also, during the sending to third parties, the Company processes, among other data, that related to the behavior of the riders in using the app. Through the platform, the Company also systematically collects and stores a wide range of data related to the execution of the order, including maps of the routes taken, estimated time and actual delivery time, history of orders placed, rejected, and reassigned. Furthermore, the Company has stated that it conducts "monitoring" of the accounts assigned to riders "aimed at detecting potential improper uses of the platform."

**\*\*Also through the platform, the profiling of the rider is carried out through the operation of the "excellence score," aimed at assigning priority in the choice of work shifts (slots). As already illustrated in the paragraph dedicated to the analysis of the automated processing carried out by the Company, the parameters that make up the excellence system are designed to assign higher scores to the rider who makes a greater number of deliveries ("Sum Seniority Normalised"), who books a greater number of high-demand slots ("Sum High Demand Normalised"), who checks in during the reserved slot within the required terms ("Sum No Show Normalised"), and who does not receive negative feedback from customers ("Sum Customer Rating Normalised"). The "excellence score" system is therefore configured in such a way as to assign more work opportunities to those who make a greater number of deliveries and thus encourage continuity in the provision of work, so much so that, to confirm this, the system reduces work opportunities for riders who do not accept the offered service (see par. 4.5. of this provision). Therefore, not only does the Company assign shifts to the riders, but the assignment favors those who offer greater availability to make deliveries and who actually make a greater number of them. The Company also evaluates performance through customer feedback, and blocks and disconnects from the platform upon the occurrence of predetermined events, interrupting the possibility of the rider performing work, also through monitoring activities by the Team Ops operators, "aimed at detecting potential improper uses of the Glovo Platform" (among these occurrences, it has emerged that the operators have disconnected from the... \*\***

platform also following a "bad rating" on the rider's performance: Annex 5, inspection report 28/2/2023, file result.csv). Some of these occurrences automatically result in disconnection or blocking from the platform or the booked slot (see paragraph 4.5 of this provision). The Company also systematically collects and stores all communications that occur with the riders through phone calls, chats, and emails. The company, finally, determines the compensation to be paid to the rider and prepares the relevant invoice.

Following the examination of the elements outlined above, which characterize the processing of personal data related to the riders, carried out by the Company within the framework of the

employment relationship governed by the standard contract acquired in the records, and documented during the inspection activities conducted at the legal headquarters of the Company and the subsequent procedure for the adoption of corrective and sanctioning measures, it emerged that the Company organizes, primarily through the digital platform, the delivery activity consisting of a predominantly personal service, identifying the time and place of the service, offering work opportunities primarily to those who, with diligence and continuity, carry out delivery activities (and on the other hand, the same standard contract provides for automatic renewal year after year, demonstrating the Company's evident interest in the continuity of the service), controlling the correct use of the platform and the proper execution of the service through the settings and functionalities of technological tools that operate remotely (digital platform, app, communication recording systems).

That said, the Guarantor, in order to verify compliance with the general principle of lawfulness of processing contained in Article 5, paragraph 1, letter a) of the Regulation, is also required to evaluate the processing carried out by the data controller in light of the applicable sector regulations in the specific case. The national legislator, with reference to so-called hetero-organized collaborations (pursuant to Article 2, Legislative Decree 15/6/2015, no. 81), has established that "As of January 1, 2016, the regulations governing the employment relationship also apply to collaboration agreements that consist of predominantly personal, continuous work, and whose execution methods are organized by the client. The provisions of this paragraph also apply when the execution methods of the service are organized through platforms, including digital ones."

In this regard, the Court of Cassation, with ruling 24 January 2020, no. 1663, concerning the conditions for the applicability of the aforementioned regulations to a case concerning the employment relationship between a "food delivery" company and some riders, clarified that Article 2, Legislative Decree no. 81/2015 must be qualified as a regulatory norm that does not create a new legal category, as "upon the occurrence of the characteristics of the collaborations identified by Article 2, paragraph 1, of Legislative Decree 81 of 2015, the law imperatively links the application of the subordination discipline."

It is therefore deemed necessary to apply the aforementioned regulations concerning so-called hetero-organized collaborations to the case at hand, noting that, within the framework of the regulations governing the employment relationship, the protections established by Law 20/5/1970, no. 300, are included, which constitute a significant manifestation, particularly those set forth in Article 4 regarding remote monitoring (in a similar sense, the Court of Florence ruled on 24/11/2021, no. 781 against a different company operating in the food delivery sector, establishing that the recognition of organized collaborations by the client pursuant to Article 2, paragraph 1, Legislative Decree 81/2015, of "equivalent protection" to that of subordinate workers with "full application of the subordinate labor regulations" - as established by Cass. Labor Section, ruling no. 1663 of 24/01/2020 - includes within it "the rights affirmed in the Workers' Statute"; recently see also Court of Civitavecchia, ruling 15/5/2024, which confirmed that Article 2, paragraph 1, Legislative Decree 81/2015 "makes a generic and complete reference to the regulations applicable to subordinate workers pursuant to Article 2094 of the Civil Code" and that "in cases where the legislator intended to exclude one or more legal institutions specific to the subordinate employment relationship [...] it did so expressly").

On the other hand, also regarding the guarantees provided for those who are, in practice, part of a self-employment relationship, the legislator has established the application of the regulations "to protect the freedom and dignity of the worker" provided for subordinate workers (see Article 47-bis, Legislative Decree no. 81/2015, which established "minimum levels of protection for self-employed workers who carry out delivery activities on behalf of others [...] through platforms, including digital ones" and Article 47-quinquies, according to which "The regulations on anti-discrimination and those protecting the freedom and dignity of the worker provided for subordinate workers apply to the workers referred to in Article 47-bis, including access to the platform") (in a similar sense see INL circular 14 April 2023, "Operational guidelines regarding the issuance of authorization measures pursuant to Article 4 of Law no. 300/1970").

Therefore, even considering that it is necessary to apply, from this perspective, the regulations

concerning self-employment relationships, the provisions would also apply.

**\*\*Regulations on Remote Monitoring.\*\***

Indeed, as is well known, Title I of Law No. 300/1970, which also includes Article 4, is titled “On the Freedom and Dignity of the Worker” (in the same sense see Circular of the Ministry of Labor dated November 19, 2020).

Specifically concerning the processing carried out within the employment relationship, considering the peculiarities that characterize them and the specific needs for the protection of the interested parties arising from the asymmetry of the parties that typically characterizes the employer/employee relationship, Article 88 of the Regulation has preserved national provisions of greater protection (“more specific provisions”) aimed at ensuring the protection of rights and freedoms regarding the processing of personal data of workers, regardless of the specific type of employment relationship.

Among the provisions of greater protection is, as notified by Italy to the Commission, pursuant to the same Article 88, paragraph 3, also Article 114 of the Code (“Guarantees concerning remote monitoring”), which identifies, among the conditions for the lawfulness of processing, compliance with Article 4 of Law No. 300 of May 20, 1970.

The aforementioned Article 4 of Law No. 300/1970 establishes that “Audiovisual systems and other tools from which the possibility of remote monitoring of the activities of workers may also derive can be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets, and may be installed subject to a collective agreement concluded by the unitary trade union representation or by the company trade union representatives. Alternatively, in the case of companies with production units located in different provinces of the same region or in multiple regions, such an agreement may be concluded by the comparatively more representative trade union associations at the national level. In the absence of an agreement, the systems and tools referred to in the first sentence may be installed subject to authorization from the territorial office of the National Labor Inspectorate.”

In this specific case, the Company, while systematically monitoring the work performance of the riders through the settings and functionalities of technological tools that operate remotely (digital platform, app, communication recording systems), as described above, did not comply with what is established by Article 4, paragraph 1, of Law No. 300/1970, since it did not verify that the tools used are attributable to the purposes expressly permitted by the legal framework (organizational and productive needs, workplace safety, and protection of company assets) nor did it activate the guarantee procedure provided for in the case of the existence of one of the aforementioned purposes (collective agreement concluded with the trade union representatives or, in the absence thereof, authorization from the National Labor Inspectorate).

It should be noted in this regard that various rulings from the ordinary judiciary have established that the guarantees established by the legal framework for the protection of subordinate work apply to the Company: Tribunal of Turin, Labor Section, ruling of March 12, 2024, No. 231; Court of Appeal of Turin, Labor Section, ruling of July 11, 2023, No. 340; Tribunal of Palermo, Labor Section, June 20, 2023; Tribunal of Milan, Labor Section, ruling of November 29, 2022, No. 2864; Tribunal of Turin, Labor Section, ruling of November 15, 2022; Tribunal of Palermo, Labor Section, order of August 3, 2022; Tribunal of Palermo, Labor Section, ruling of November 24, 2020, No. 3570.

The arguments put forward by the Company in its defense submissions cannot be accepted in this regard.

It is preliminarily noted that, contrary to what the Company has claimed regarding the contested violation of Article 88 of the Regulation (“the provision does not apply as it does not impose obligations on private companies like Foodinho, but only obligations to act on member states”), it is the Regulation itself that has provided for the imposition of an administrative monetary sanction in the event of violation of “any obligation under the legislation of the member states adopted pursuant to Chapter IX” (a chapter that includes Article 88, “Processing of data in the context of employment relationships”; regarding Article 88 of the Regulation and the notion of “more specific provisions” to ensure the protection of the rights and freedoms of employees concerning the processing of their personal data in the context of employment relationships, see CJEU, March 30, 2023, case C-34/21).

The Company has also argued that the riders “are not subordinate workers” and “are always free to

give or not give their availability for the various slots offered by Foodinho.” Furthermore, the riders “decide fully autonomously whether and when to work without having to communicate and/or justify their decisions in terms of lack of availability.”

It is stated that the Authority does not intend to qualify the nature of the employment relationship between the Company and the riders, but rather to apply the provisions of the legal framework based on the principle of lawfulness of processing. The results of the monitoring activity carried out on the processing of the riders' data have highlighted that the booking of work shifts offered by the Company is not “free” but conditioned by the operation of the excellence scoring mechanisms. Therefore, the work performance of the rider is not carried out “in full autonomy,” considering also that the lack of availability to perform the service penalizes them following the reassignment of the order.

Nor can the thesis be accepted that the Company does not exercise any control over the activities of the riders as “geolocation as well as the...

**\*\*Mechanism for the Attribution of the Excellence Score\*\***

The “mechanism for the attribution of the Excellence Score” constitutes the “intrinsic characteristics of the activity of couriers and [the] performance of the service through the Platform itself.”

The methods by which the Company manages and organizes the delivery service are not “intrinsic” to the activity but rather determined by the specific characteristics of the organizational model chosen and established by the Company. Similarly, regarding the applicability, as proposed by the Company in a subordinate manner, of Article 4, paragraph 2, Law No. 300/1970 on the assumption of qualifying the tools used by the Company as “tools used by the worker to perform the work,” it is noted that, based on the evidentiary findings, no element has emerged that represents that the performance required from the riders cannot be rendered except through the technological tools and methods currently used.

It has instead emerged that the complex systems employed by the Company implement processes that go well beyond what is necessary to provide the service concerning the efficient delivery of a good (see, for example, the detection of the rider's geographical position with the close timing of Google Maps even when the app is in the background; the attribution of a score and profiling of the rider; the collection and storage of a large amount of data related to order management through a plurality of tools (app, digital platform, customer service) that allow for further processing by the owner).

Given the above, the violation of the principle of lawfulness of processing (Article 5, paragraph 1, letter a) of the Regulation in relation to Article 114 of the Code) and of Article 88 of the Regulation, which allows national law to provide for “more specific measures to ensure the protection of the rights and freedoms regarding the processing of personal data of employees in the context of employment relationships,” is therefore established.

**\*\*5. Conclusions: Declaration of Illegality of Processing. Corrective Measures pursuant to Article 58, paragraph 2, Regulation.\*\***

For the aforementioned reasons, in light of what has been overall observed, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation, characterized among other things by unjustified narrative prolixity and sometimes by incoherent reconstructions, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply.

The processing of personal data carried out by the Company, and specifically the processing of rider data mostly conducted through the digital platform, is indeed illegal, as outlined above, in relation to Articles 5, paragraph 1, letter a) - also with reference to what is provided for by Article 1-bis of Legislative Decree No. 152 of 1997 -, c) and d) (principles of transparency, fairness, adequacy, relevance, and accuracy of processing), e), 6, 9, paragraph 2, letter b), 12, 13, 22, paragraph 3, 25, 28, 32, 35, 88 of the Regulation, Articles 2-septies and 114 of the Code, and Article 47-quinquies, Legislative Decree No. 81/2015.

Although the Company, during the procedure, adopted some - limited - modifications to the processing

subject to notification of violations by the Garante (on 11/10/2023), these are mostly still active at this time. This is despite the adoption of a previous measure by this Authority regarding the processing of rider data conducted through the digital platform (Provision of June 10, 2021 No. 234).

The violation, established in the terms outlined in the reasoning, cannot be considered "minor," given the nature of the violation that concerned, among other things, the general principles and conditions of lawfulness of processing even of special data (biometric data) as well as the severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

The Authority also deemed that the level of severity of the violation is high, in light of all relevant factors in the specific case, particularly the nature, severity, and duration of the violation, considering the nature, object, or purpose of the processing in question as well as the number of affected individuals harmed by the damage and the level of damage they suffered.

The Authority also considered the criteria related to the intentional or negligent nature of the violation and the categories of personal data affected by the violation as well as the manner in which the supervisory authority became aware of the violation (see Article 83, paragraph 2 and Recital 148 of the Regulation).

Therefore, in view of the corrective powers conferred by Article 58, paragraph 2 of the Regulation, it is deemed necessary to assign the Company a deadline to bring the ongoing data processing into compliance with the Regulation.

In light of the above, the Authority: prohibits the Company from further processing the biometric data of riders (Article 58, paragraph 2, letter f) of the Regulation); orders the deletion of biometric data processed in the context of the rider authentication procedure; orders the reformulation of messages sent to riders following the deactivation and/or blocking, in terms mentioned in the motivation (Article 58, paragraph 2, letter d), Regulation); orders compliance with the Regulation regarding the proper preparation of documents containing the information and the impact assessment, in the terms mentioned in the motivation (Article 58, paragraph 2, letter d), Regulation); orders compliance with the Regulation regarding the identification of the data retention periods, in the terms mentioned in the motivation (Article 58, paragraph 2, letter d), Regulation); orders compliance with the Regulation regarding the identification of appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, at least the right to obtain human intervention from the data controller, to express their opinion, and to contest the decision, in relation to automated processing including profiling carried out through the platform, ensuring adequate training of the operators involved as well as the possibility for the operators themselves to disregard, if necessary, the output of the algorithmic process, to avoid the possible tendency to rely on it automatically (Article 58, paragraph 2, letter d), Regulation); orders the identification of appropriate measures aimed at the periodic verification of the correctness and accuracy of the results of the algorithmic systems, also to ensure that the risk of errors as well as the use of excessive, outdated, or inaccurate data is minimized, to be initiated within 60 days from the receipt of this provision, concluding the verification activity within the subsequent 90 days; orders compliance with the Regulation regarding the identification of appropriate measures aimed at introducing tools to prevent improper and discriminatory uses of reputation mechanisms based on feedback; this verification must be repeated with every modification of the algorithm regarding the use of feedback for score calculation (Article 58, paragraph 2, letter d), Regulation); orders compliance with the provisions of Article 47-quinquies, Legislative Decree No. 81/2015, regarding the prohibition of "exclusion from the platform and [the] reduction of job opportunities attributable to the failure to accept the service" (Article 58, paragraph 2, letter d), Regulation); orders compliance with the Regulation regarding the processing of personal data related to riders sent to third parties, concerning the application of the principles of minimization and privacy by design and by default, in the terms mentioned in the motivation (Article 58, paragraph 2, letter d), Regulation); orders a detailed analysis aimed at verifying the categories of personal data exchanged with third



parties, through the use of SDKs or APIs, created by those third parties;  
orders verification, at least semi-annually, of the list of operators who, with cross-country access authorization, can access the data of riders operating in Italian territory;  
orders compliance with the Regulation regarding the deactivation of GPS localization when the app is in the background and in any case the activation on the rider's device of an icon indicating that GPS is active (Article 58, paragraph 2, letter d), Regulation);  
orders compliance with the Regulation regarding the designation of riders pursuant to Article 28 of the Regulation in the terms mentioned in the motivation (Article 58, paragraph 2, letter d), Regulation);  
orders the Company to comply with the Regulation regarding the fulfillment of what is provided for in Article 4, paragraph 1, Law 20.5.1970, No. 300, in the terms mentioned in the motivation (Article 58, paragraph 2, letter d), Regulation).

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

At the conclusion of the proceedings, it appears that Foodinho s.r.l. has violated Articles 5, paragraph 1, letter a) - also with reference to what is provided for in Article 1-bis of Legislative Decree No. 152 of 1997 -, c), d) and e) (principles of lawfulness, fairness, transparency, minimization, and accuracy of processing), 6, 9, paragraph 2, letter b), 12, 13, 22, paragraph 3, 25, 28, 32, 35, 88 of the Regulation, Articles 2-septies and 114 of the Code and Article 47-quinquies, Legislative Decree No. 81/2015. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by Article 83 of the Regulation is foreseen.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83 of the Regulation, by adopting an injunction order (Article 18, Law 24 November 1981 No. 689), in relation to the processing of personal data carried out by Foodinho s.r.l., which has been found to be unlawful, in the terms outlined above.

It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation where it states that "If, in relation to the same processing or related processing, a data controller [...] violates, intentionally or negligently, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same.

art. 83, par. 5.

With reference to the elements listed in art. 83, par. 2 of the Regulation for the purpose of applying the administrative monetary sanction and its quantification, considering that the level of severity of the violation is high, taking into account that the sanction must "in each individual case [be] effective, proportionate and dissuasive" (art. 83, par. 1 of the Regulation), it is represented that, in the specific case, the following circumstances have been considered:

a) in relation to the nature of the violation, it also involved cases punished more severely pursuant to art. 83, par. 5, of the Regulation due to the interest protected by the violated norms (concerning the general principles of lawfulness, fairness and transparency, minimization, accuracy, limitation of storage, integrity and confidentiality of processing; the conditions of lawfulness also for the processing of special data; the right to information; the rights of data subjects in the face of decisions based solely on automated processing; the more specific provisions regarding remote controls expressly referred to by the personal data protection regulations);

b) in relation to the severity of the violation, the nature of the processing has been taken into account, which involved, at the national level, a plurality of data relating to vulnerable data subjects, including special data and data related to communications; such processing is characterized by the use of complex algorithmic systems in a work context marked by significant asymmetry of power between the parties involved, also considering the central relevance of the processing concerning the main activities of the data controller;

c) with regard to the duration of the violation, the extensive duration of the same has been considered, taking into account, among other things, that most of the processing is still ongoing (in particular, for the processing indicated in par. 4.2., 4.5., 4.6., 4.8., 4.9., 4.10., 4.12, the processing has been carried

out in violation of the personal data protection regulations for an undetermined time, at least since the inspection assessment of December 13 and 14, 2022; for the processing indicated in par. 4.1., the processing has been carried out in violation of the personal data protection regulations for an undetermined time, at least since October 3, 2022, the date of sending a message to S.G.'s account; for the processing indicated in par. 4.3., the processing has been carried out in violation of the personal data protection regulations for an undetermined time, at least since August 1, 2022, the date of entry into force of art. 1-bis of Legislative Decree No. 152 of 1997; for the processing related to the designation of the rider as data processor, indicated in par. 4.4., the violation has been in place for an undetermined time, at least since April 29, 2022, the date indicated in the Terms and Conditions document delivered during the inspection assessment of December 13 and 14, 2022; for the processing related to the designation of sub-processors of GlovoApp23 SL (operators of Comdata and Trizma), indicated in par. 4.4., the violation continued until February 29, 2024, the date on which the Company represented that it had provided instructions to the call center operators; for the processing related to the rating, indicated in par. 4.5.2., the processing has been carried out in violation of the personal data protection regulations from the inspection assessment of July 26 and 27, 2023 until January 10, 2024, the date on which the Company deleted such value; for the processing related to biometric data indicated in par. 4.7., the processing in violation of the protection regulations began on November 23, 2020; for the processing indicated in par. 4.11., the processing has been carried out in violation of the personal data protection regulations for an undetermined time, at least since the inspection assessments of July 26 and 27, 2023);

d) the relevant number of data subjects concretely involved has also been considered (36,545 active riders as of December 27, 2022), also taking into account the additional data subjects potentially involved after December 27, 2022;

e) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the data controller, the objective elements of the Company's conduct and its degree of responsibility have been taken into account, as it violated the duty of diligence provided for by the legal system and did not comply with the regulations on data protection, concerning a plurality of provisions. In relation to this parameter, it has also been considered that the Company, during the proceedings, represented that regarding the attribution of a fixed rating to the riders and the communication of data to third parties also through their SDKs, it was not aware of the related processing; this denotes a seriously negligent conduct, considering that the processing was carried out with particularly complex technologies, for which it is necessary to implement adequate verification and control activities. Moreover, to date, no specific measures appear to have been concretely implemented to protect the data subjects (except for the deletion of the fixed rating attribution to the riders);

f) as an aggravating factor, it has been considered that the Company was the recipient of the Authority's provision No. 234 of 2021, following the ascertainment of the violation of arts. 5, par. 1, lett. a), c) and e); 13; 22, par. 3; 25; 30, par. 1, lett. a), b), c), f) and g); 32; 35; 37, par. 7; 88 of the Regulation;

**\*\*114 of the Code. Despite this measure having established that the Company has committed previous violations related to the processing of rider data, the Company has not implemented any significant changes regarding the processing of rider data carried out by it;\*\***

g) as an aggravating factor, the level of harm suffered by the data subjects due to the processing carried out, mostly through the digital platform, in the absence of the overall safeguards provided by the personal data protection system, has also been considered, in light of the high risks presented by the use of complex and highly invasive technological systems that allow for the evaluation and control of the actions of the data subjects and the adoption of decisions that significantly impact the data subjects concerning the possibility of obtaining job opportunities;

h) as a mitigating factor, in favor of the Company, account has been taken of its willingness, represented to the Authority during the proceedings, to make and plan some modifications to the processing carried out, which, although limited to specific aspects, have allowed for the limitation of negative consequences on the rights of the data subjects concerning such aspects.

It is also considered that the economic conditions of the offender, determined based on the revenues obtained concerning the Company's turnover for the tax period 2023, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and deterrence to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

In light of the above elements and the assessments made, it is deemed appropriate, in this case, to apply to Foodinho s.r.l. the administrative sanction of payment of an amount equal to €5,000,000 (five million).

In this context, it is also considered that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed.

This is in consideration of the type of violations established that concerned the general principles of processing, the conditions of lawfulness even for the processing of special data, the right to information, the right not to be subjected to a decision based solely on automated processing, the more specific provisions regarding remote monitoring, as well as the significant number of data subjects involved.

**\*\*ALL OF THE ABOVE CONSIDERED, THE Garante\*\***

pursuant to Article 57, paragraph 1, letter f) and 83 of the Regulation, finds the unlawfulness of the processing carried out by Foodinho s.r.l., represented by its legal representative, with registered office at Via Giovanni Battista Pirelli, 31, Milan (MI), Tax Code 09080990964, as stated in the reasoning, for the violation of Articles 5, paragraph 1, letter a) - also with reference to what is provided for by Article 1-bis of Legislative Decree No. 152 of 1997 -, c) and d) (principles of transparency, fairness, adequacy, relevance, and accuracy of processing), e), 6, 9, paragraph 2, letter b), 12, 13, 22, paragraph 3, 25, 28, 32, 35, 88 of the Regulation, Articles 2-septies and 114 of the Code, and Article 47-quinquies, Legislative Decree No. 81/2015;

pursuant to Article 58, paragraph 2, letter f) of the Regulation, imposes on Foodinho s.r.l. the prohibition of further processing of the biometric data of the riders;

pursuant to Article 58, paragraph 2, letter g), of the Regulation, orders Foodinho s.r.l. to delete the biometric data of the riders within 30 days of receipt of this provision;

pursuant to Article 58, paragraph 2, letter d), of the Regulation, prescribes to Foodinho s.r.l. to align its processing with the Regulation concerning:

- the reformulation of the messages sent to the riders following deactivation and/or blocking as stated in the reasoning within 60 days from the notification of this provision;
- the correct preparation of documents containing the information and impact assessment as stated in the reasoning within 60 days from the notification of this provision;
- the identification of the retention periods of the processed data, as stated in the reasoning within 60 days from the notification of this provision;
- the identification of appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, at least the right to obtain human intervention from the data controller, to express their opinion, and to contest the decision, concerning automated processing including profiling carried out through the platform, ensuring adequate training of the operators involved as well as the possibility for the operators themselves to disregard, if necessary, the output of the algorithmic process, to avoid the possible tendency to rely on it automatically, within 60 days from the notification of this provision;
- the identification of appropriate measures aimed at the periodic verification of the correctness and accuracy of the results of the algorithmic systems also to ensure that the risk of errors as well as the use of excessive, outdated, or inaccurate data is minimized, to be initiated within 60 days from the notification of this provision, concluding the verification activity within the subsequent 90 days;
- the identification of appropriate measures aimed at...

introduce tools to prevent improper and discriminatory uses of reputation mechanisms based on

feedback; this verification must be repeated with every modification of the algorithm regarding the use of feedback for the calculation of the score to be initiated within 60 days from the notification of this provision, completing the verification activity within the subsequent 90 days;

- compliance with the provisions of Article 47-quinquies, Legislative Decree No. 81/2015 regarding the prohibition of “exclusion from the platform and [the] reduction of work opportunities attributable to the failure to accept the service,” to be initiated within 60 days from the notification of this provision, completing the verification activity within the subsequent 90 days;

- application of the principles of minimization and privacy by design and by default in relation to the sending of personal data concerning riders to third parties, as detailed in the reasoning, to be initiated within 60 days from the notification of this provision, completing the verification activity within the subsequent 120 days;

- conducting a detailed analysis aimed at verifying the categories of personal data exchanged with third parties through the use of SDKs or APIs created by such third parties to be initiated within 60 days from the notification of this provision, completing the verification activity within the subsequent 90 days;

- verification, at least semi-annually, of the list of operators who, with cross-country access authorization, can access the data of riders operating in Italian territory within 60 days from the notification of this provision, completing the verification activity within the subsequent 90 days;

- deactivation of GPS location when the app is in the background and, in any case, activation on the rider's device of an icon indicating that the GPS is active within 60 days from the notification of this provision;

- designation of riders pursuant to Article 28 of the Regulation as detailed in the reasoning within 60 days from the notification of this provision;

- compliance with the provisions of Article 4, paragraph 1, Law 20/5/1970, No. 300, as detailed in the reasoning within 60 days from the notification of this provision;

Foodinho s.r.l. is requested to communicate what initiatives have been undertaken to implement the provisions of this order and to provide adequately documented feedback pursuant to Article 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e) of the Regulation.

## ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, Foodinho s.r.l. to pay the sum of €5,000,000 (five million) as an administrative pecuniary sanction for the violations indicated in this provision;

## COMMANDS

therefore to pay the aforementioned sum of €5,000,000 (five million) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is reminded that the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for in Article 10, paragraph 3, of Legislative Decree No. 150 of 1.9.2011, as indicated for the submission of the appeal (Article 166, paragraph 8, of the Code);

## DISPOSES

a) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;

b) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No.

1/2019, the publication of this provision on the Garante's website;

c) pursuant to Article 17 of Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, November 13, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei